

FEDERAL MARITIME COMMISSION

FMC AGREEMENT No. 201349,
WORLD SHIPPING COUNCIL AGREEMENT,
A COOPERATIVE WORKING AGREEMENT

Docket No. 25-10

Served: September 25, 2026

BY THE COMMISSION: Laura DiBELLA, *Chairman*,
Rebecca F. DYE, Daniel B. MAFFEI, Max M. VEKICH,
Robert J. HARVEY, *Commissioners*.

Order to Conclude Investigation

The Federal Maritime Commission (Commission or FMC) opened an investigation into the World Shipping Council (WSC) Agreement in June 2025. WSC is a trade association whose members operate about 90 percent of the world's liner vessel services. It filed the Agreement with the Commission in October 2020. *See* FMC Agreement No. 201349 (as most recently amended and filed February 27, 2026)¹ (Agreement), attached as Exhibit A. The Agreement authorized WSC's 21 ocean common carrier-members who are parties to it (Agreement Parties) to engage in seven categories of activities, which involve discussing and formulating common positions on a range of policy, legal, and other topics. *See* Ex. A at Art. 5.1; Appendix A. The Commission's

¹ The most recent amendment to WSC's Agreement in Article 5.1(e) of WSC's original Agreement (now Article 5.1(c) of WSC's Amended and Restated Agreement) is not included within this investigation. This amendment became effective on September 19, 2026, following the Commission's issuance of requests for additional information. *See* 91 Fed. Reg. 19136 (Apr. 14, 2026).

investigation of WSC's Agreement, pursuant to its authority under 46 U.S.C. § 41302, was to determine whether the Agreement, by its terms, included activities that were not within the FMC's jurisdiction over filed agreements. WSC's Agreement appeared to have been filed as a "cooperative working arrangement" under 46 U.S.C. § 40301(a)(5). However, the Commission had reason to believe that at least some of the activities described in Agreement Article 5.1 did not involve the working or operational activities of ocean carriers and thus did not properly fall within that statutory agreement category as interpreted by the U.S. Supreme Court in *FMC v. Seatrain Lines*, 411 U.S. 726, 734 (1973).

At the outset of the investigation, the Commission ordered WSC to show cause as to why the agency should not cancel the Agreement. *See* Order to Show Cause, FMC Docket No. 25-10 (Doc. 1) (June 26, 2025). WSC filed a detailed response to the Order to Show Cause in August 2025 justifying its Agreement as a "cooperative working arrangement" under § 40301(a)(5). *See* Response of the World Shipping Council to Order to Show Cause, FMC Docket No. 25-10 (Doc. 2) (Aug. 26, 2025). On March 6, 2026, the Commission served an Order on Investigation (OI) concluding that several categories of activities in Agreement Article 5.1, including those related to WSC's trade association activities and conduct on legal and regulatory issues, were not within the FMC's jurisdiction and canceling those provisions in the Agreement. *See* Order on Investigation, FMC Docket No. 25-10 (Doc. 3) (Mar. 6, 2026). The Commission ordered WSC to submit a proposed amended agreement with the remaining activities it wanted to include and to explain how each category of proposed activities closely related to the operational activities of common carriers and thereby qualified for inclusion as a "cooperative working arrangement." *See id.*

In May 2026, WSC filed its Amended and Restated Agreement removing all provisions relating to its trade association work that the Commission had canceled, as well as a provision relating to information technology and customs activities. *See*

Response of the World Shipping Council to Order on Investigation, Amended and Restated Agreement, and Agreement Redline, FMC Docket No. 25-10 (Doc. 4) (May 5, 2026) (Response), Agreement Redline attached as Exhibit B and Amended and Restated Agreement attached as Exhibit C. In its Response, WSC contended that the activities that remain in the Agreement, relating to matters involving (1) environmental and climate, (2) transportation infrastructure and supply chain fluidity, and (3) safety and security, are within the scope of § 40301(a)(5) as closely related to the operational business activities of WSC's common carrier-members who are the Agreement Parties. *See id.*

After consideration of WSC's Amended and Restated Agreement, its Response, and all relevant issues, the Commission has determined that WSC's Amended and Restated Agreement is properly within the agency's jurisdiction over "cooperative working arrangements" as defined in § 40301(a)(5). WSC made appropriate modifications to remove or revise language that constitutes trade association activities not properly within the Commission's jurisdiction under the Shipping Act, and it provided sufficient explanation showing how the limited scope of activities remaining in its Amended and Restated Agreement relate to the working or operational activities of ocean carriers. The Commission directs WSC to file its proposed new Agreement via the agency's e-filing systems with one modification relating to the governance of the Agreement: retaining WSC's Bylaws as an appendix to the Agreement, as explained below.

I. BACKGROUND

A. WSC and the Commission's Investigation of the WSC Agreement

WSC operated as a trade association for about 20 years before it filed FMC Agreement No. 201349 on October 1, 2020. *See* Ex. A at Art. 2. WSC's members are the world's major ocean carriers, whose operations together account for about 90 percent of

global container shipping services. *See* World Shipping Council, <https://www.worldshipping.org/>. The current parties to WSC's Agreement are the 21 common carrier-members of WSC that meet the definition of ocean common carrier. *See* Ex. A at Arts. 3, 8, Appendix A; Ex. C (Amended and Restated Agreement) at Arts. 3, 7, Appendix A.

The Agreement, as it existed at the start of this investigation, authorized WSC's members to "exchange information, discuss, and reach voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices)" on seven topics. Ex. A at Art. 5.1. These topics were:

- a) Environmental and climate-related matters;
- b) Legal issues related to competition or antitrust laws and the application of those laws to the ocean transportation industry;
- c) Positions on international agreements, treaties, conventions, and laws related to international trade;
- d) Positions on government regulation of transportation infrastructure and supply chain logistics;
- e) Safety and security issues in ocean shipping, including screening dangerous cargo;
- f) Positions on government regulation of information technology and data submissions for transportation-related documents; and
- g) Trade association activities.

See id. at Arts. 5.1(a)-(g), 6. The Agreement has been amended seven times, with most being minor updates to add new parties or amend WSC's Bylaws. However, in 2023, WSC amended its Agreement to allow its members to develop tools and processes to enhance cargo screening, and specifically to develop a common cargo safety program to better detect and flag containerized cargo

for dangerous goods. *See* Ex. A at Art. 5.1(e). The Commission requested additional information from WSC to better understand the scope of this amendment, and the amended Agreement became effective in September 2023. *See* Notice of Request for Additional Information, 88 Fed. Reg. 42941 (July 5, 2023).

In February 2026, WSC filed its seventh amendment to expand its cargo screening program to include a database of carrier-reported incidents involving hazardous cargo that would share reports between WSC's carrier-members utilizing the program. In April 2026, the Commission again issued a request for additional information to assess whether the proposed new database complied with the Shipping Act, and the amendment became effective on September 19, 2026. *See* Notice of Request for Additional Information, 91 Fed. Reg. 19136 (Apr. 14, 2026). This amendment is not within the scope of this investigation.

In June 2025, the Commission initiated an investigation of WSC's Agreement pursuant to its authority under 46 U.S.C. § 41302. *See* FMC Docket No. 25-10 (Doc. 1). The Commission sought to determine whether the activities listed in the Agreement were consistent with the agency's jurisdiction over such agreements. *See id.* WSC filed a response to the Order to Show Cause in August 2025, confirming the Agreement was filed as a "cooperative working arrangement" under § 40301(a)(5) and arguing that its conduct pursuant to the Agreement was "operational" in nature and was thereby within the FMC's jurisdiction. *See* FMC Docket No. 25-10 (Doc. 2). WSC also claimed the Commission's interpretation of "cooperative working arrangement," as articulated in the Order to Show Cause, was too narrow and inconsistent with the agency's past practices regarding WSC's Agreement and several other agreements that included activities arguably comparable to those in WSC's Agreement. *See id.*

In March 2026, the Commission concluded that several categories of activities in WSC's Agreement were not properly within the scope of the Commission's jurisdiction over a

“cooperative working arrangement” under § 40301(a)(5) and determined that WSC’s arguments to the contrary were unpersuasive. *See* FMC Docket No. 25-10 (Doc. 3). Specifically, the Commission canceled Agreement provisions 5.1(b), (c), and (g). *See id.* at 27. The OI allowed WSC to submit a proposed amended agreement and a brief explaining how any remaining activities qualified under § 40301(a)(5), if it wanted to continue with a filed agreement at the FMC. *See id.*

B. WSC’s Amended and Restated Agreement and Response

On May 5, 2026, WSC submitted an Amended and Restated Agreement, a redline showing which provisions had been removed and which had been modified from its previous Agreement, and a Response explaining how its current proposed activities fit within the standard for a “cooperative working arrangement” under § 40301(a)(5). *See* Response; Ex. B (Agreement Redline); Ex. C (Amended and Restated Agreement). WSC reiterated that even though it was amending its Agreement in line with the OI’s direction, WSC still disputed the OI’s interpretation of the meaning of a “cooperative working arrangement,” which relied upon the Supreme Court’s reasoning in *Federal Maritime Commission v. Seatrain Lines*. *See* Response at 2-3 n.1.

In compliance with the Commission’s direction in the OI, WSC removed provisions and agreement language that related to the organization’s trade association activities. *See* Response at 6, 10. This entailed removing original Agreement Articles 5.1(b), (c), (g), and Article 6. Ex. B at 8-15. WSC also chose to remove original Agreement Article 5.1(f), activities related to taking positions on government regulation of information technology and data submissions for transportation-related documents, explaining this category of activities would also qualify as trade association activities that would not fall under § 40301(a)(5). *See* Response at 10; Ex. B at 12-13.

It also modified Article 2, Purposes of the Agreement, and Article 4, Geographic Scope, to clarify that WSC will continue to undertake trade association activities but that those activities are not subject to the Shipping Act and thus not within the scope of its Agreement with the FMC. *See* Response at 3-4; Ex. B at 6-8. WSC also modified articles relating to the administration of the Agreement to remove WSC's Bylaws as an appendix to the Agreement, though the Amended and Restated Agreement is still administered "in accordance with the WSC Bylaws." Response at 4; Ex. B at 15-17. WSC explained it made this change "because WSC's Bylaws are the governing document for WSC's work as a trade association and therefore under the [OI] are also outside of the bounds of what the Commission interprets as a [cooperative working arrangement] to be included in an FMC Agreement." Response at 4.

WSC's Amended and Restated Agreement retains three categories of activities from its original Agreement. *See* Ex. B at 8-13. WSC maintains original Agreement Article 5.1(a) related to environmental and climate-related matters. *See id.* at 8-9. Its Response provides detailed explanations for how groups of activities within this topic are closely related to the operations of WSC's carrier-members, including (1) vessel emissions and alternative fuels, (2) transiting high risk or environmentally sensitive areas, (3) plastics at sea, noise pollution, and protection of endangered species, and (4) ship recycling, cold-ironing, and ballast water exchange. Response at 4-6. WSC retains original Agreement Article 5.1(d) (now 5.1(b) in the Amended and Restated Agreement) relating to transportation infrastructure and supply chain fluidity matters. *See* Ex. B at 9-10. WSC removed language in this provision that the Agreement authorized parties to discuss and agree on "positions to be taken with respect to requirements of or under consideration by state, national, regional, or international governments or institutions" on this topic. *See id.* WSC explains that these topics are closely related to its members' operations and states it has previously used this authority to facilitate discussions between carriers during periods that stressed the global supply chain, such as

COVID-19, regional and global conflicts, including those in the Red Sea and the Middle East, and the Panama Canal drought periods. Response at 6-7.

Finally, WSC retains original Agreement Article 5.1(e) (now 5.1(c) in the Amended and Restated Agreement) relating to safety and security matters, again explaining how groups of activities within this topic are closely related to the operations of its carrier-members and intended to “enhance[] the operational safety and security of the global supply chain.” Response at 7-10; Ex. B at 10-12. These activities relate to (1) cargo, crew, and vessel safety related to dangerous goods, including WSC’s Cargo Safety Program;² (2) safety hazards including pest contamination, containers lost at sea, and container packing and stowage; (3) illicit trafficking of drugs, wildlife, and persons; and (4) a new addition to this provision relating to seafarer safety and security, including sharing information and agreeing upon voluntary best practices and creating and maintaining databases and visualization tools on this topic. *See id.*

II. DISCUSSION

Under the Shipping Act, the Commission has jurisdiction over seven specific types of agreements between or among ocean common carriers that relate to the carriers’ shipping operations. 46 U.S.C. § 40301(a)(1)-(7). Agreements that are filed with the FMC and that are effective have a limited antitrust exemption under 46 U.S.C. § 40307. WSC filed its Agreement as a “cooperative working arrangement” under § 40301(a)(5). *See* Response of the World Shipping Council to Order to Show Cause at 1, 6, FMC Docket No. 25-10 (Doc. 2). The term “cooperative working arrangement,” as interpreted by the Supreme Court in *Federal Maritime Commission*

² This section also includes an amendment for a new incident database within WSC’s Cargo Safety Program that is not included in this investigation. This amendment became effective on September 19, 2026, following the Commission’s issuance of requests for additional information. *See* 91 Fed. Reg. 19136 (Apr. 14, 2026).

v. Seatrain Lines, Inc., refers to agreement activities that are similar to the type of agreements now listed in the rest of § 40301(a), all of which focus on the actual operations of ocean carriers by regulating rates, allotting ports, or regulating freight volume or traffic. *See* 411 U.S. 726 (1973); OI at 9-14. Further, any ambiguity about whether an activity undertaken pursuant to an agreement would fall within the scope of the Shipping Act — and thus renders the activity subject to the antitrust exemption in § 40307 — should be resolved narrowly. *See* OI at 13, 16.

As the Commission explained in its OI, an agreement filed with the agency as a “cooperative working arrangement” must meet the appropriate standard in § 40301(a)(5). The Commission therefore canceled part of WSC’s Agreement that did not meet this standard and allowed WSC an opportunity to file a new agreement that is properly within the FMC’s jurisdiction under the Shipping Act. *See generally* OI. Upon review of WSC’s Amended and Restated Agreement, its Response to the Order on Investigation, and all relevant issues, the Commission has determined that WSC’s Amended and Restated Agreement is properly within the agency’s jurisdiction over “cooperative working arrangements.”

The Commission evaluates the activities WSC plans to undertake pursuant to its Amended and Restated Agreement and other revised provisions that govern the operation of the Agreement according to the below analysis.

A. **Agreement Activities in WSC’s Amended and Restated Agreement**

1. **Article 5.1(a) — environmental and climate-related matters**

WSC’s Amended and Restated Agreement retains this provision in its entirety from the previous Agreement. The Commission’s OI previously reasoned that this provision “includes elements that are likely within the proper bounds for an agreement

under section 40301(a)(5), because they relate directly to operational activities,” including “matters relating to ‘vessel emissions,’ ‘ballast water exchange,’ and ‘vessel operations in environmentally sensitive regions.’” OI at 18-19. WSC’s Response explains that the topics within this provision “directly deal with or pertain to ocean transportation,” and this provision “allow[s] the Agreement parties to reach cooperative agreements on ‘operational activities.’” Response at 5. WSC further provides details on how each grouping of topics relates to the shipping operations of its members, including processes on environmental pollution, operational life of vessels and ship recycling resources, routing of vessels and cargo to address environmental risk, and vessel emissions and use of alternative fuels. *See id.* at 5-6.

The Commission finds that these topics closely relate to the operational activities of common carriers and are different in kind than trade association or other advocacy initiatives WSC undertakes. There is value in the Agreement Parties, as the major ocean common carriers on the market, exchanging information, as appropriate, and developing best practices on environmental issues that pertain to the operations of carriers generally. This collaboration can improve the sharing of resources and knowledge on these environmental issues, leading to greater adoption of environmentally-friendly practices and potentially lower implementation costs, which can ultimately translate into lower prices for U.S. shippers. The Commission has determined that WSC has satisfied its burden to show that this provision authorizing WSC’s carrier-members to exchange information and reach non-binding agreements on these topics is within the scope of a “cooperative working arrangement” under § 40301(a)(5).

2. Article 5.1(b) (formerly Article 5.1(d)) —
transportation infrastructure and supply chain
fluidity-related matters

This provision in WSC’s Amended and Restated Agreement allows Agreement Parties to exchange information and reach non-

binding agreements on transportation infrastructure, cargo and supply chain fluidity, port and terminal operations, inland operations impacting the provision of ocean and intermodal transportation services, cargo handling/processing infrastructure and facilities, and canal operations and toll systems. Ex. B at 9-10. WSC modified this provision by removing the authority for Agreement Parties to agree on “positions to be taken with respect to requirements of or under consideration” by governments or institutions related to the above topics, as well as catchall language “and related industry practices or policies,” but otherwise retains the remainder of the provision. *Id.*

The Commission’s OI previously expressed “serious doubts” as to whether this section was “similar enough to the operational activities found in the rest of section 40301(a).” *See* OI at 18. The Commission was concerned that this section, as previously drafted, “appears to mainly relate to what ‘positions’ Agreement Parties will take regarding governmental or other industry-wide requirements, and as such they seem removed from the operational activities described in the rest of section 40301(a).” *Id.* However, the Commission also noted that “some elements may still qualify to the extent they have a sufficient connection to operational activities, potentially including those related to “port and terminal operations.” *Id.* The modifications made to this section address the initial concern the Commission articulated that the section appeared to involve WSC’s trade association work rather than operations of common carriers. WSC’s Response details that the Agreement Parties have previously used this authority to exchange information relating to carrier operations during emergent events that have strained transportation and port infrastructure and supply chains, such as COVID-19, global and regional conflicts, such as in the Red Sea and the Middle East, and drought periods in the Panama Canal. Response at 7.

These topics deal with how ocean common carriers interact with the broader ocean transportation supply chain, including ports and terminals, inland operations, and intermodal transportation services. As such, the Commission finds that they closely relate to

the operational activities of common carriers and are different in kind than trade association or other advocacy initiatives WSC undertakes. There is value in major ocean common carriers sharing information, as appropriate, on infrastructure and supply chain issues that can be unpredictable and disruptive to carrier operations and, in turn, the global economy. Indeed, given the interconnectedness of the shipping industry, WSC has the unique ability to collaborate and develop best practices guidance for carriers on international issues within the supply chain, including at ports and inland operations, that will ultimately impact U.S. ports and U.S. shippers. Collaboration through WSC allows carriers to share safety data and operational updates that are common to carriers' interactions with the rest of the ocean shipping supply chain, which can ultimately translate into less service disruptions and more predictable shipping options for U.S. shippers. The Commission has determined that WSC has satisfied its burden to show that this provision, as modified, authorizing WSC's carrier-members to exchange information and reach non-binding agreements on these topics is within the scope of a "cooperative working arrangement" under § 40301(a)(5).

3. Article 5.1(c) (formerly Article 5.1(e)) —
safety and security-related matters

This provision in WSC's Amended and Restated Agreement retains the existing authority from the previous Agreement allowing the Agreement Parties to exchange information and reach nonbinding agreements on various safety and security issues, including pest contaminations, containers lost at sea, container packaging and stowage, as well as trafficking or smuggling of drugs, wildlife, and persons. *See* Ex. B at 10. It also retains authority from the previous Agreement relating to WSC's development of its Cargo Safety Program³ that allows WSC's carrier-members to develop and opt into a program that recommends when cargo bookings may

³ *See supra* n.2 for discussion of an amendment to WSC's Cargo Safety Program to include an "Incident Database" that is outside the scope of this investigation.

contain mis-declared or undeclared dangerous goods. *Id.* at 11-12. The Commission's OI previously reasoned that this section "includes elements that likely have a sufficient link to operational activities" and that "WSC appears to have devoted significant effort in recent years to the development of its cargo safety program." OI at 19. WSC's Response highlights that its Cargo Safety Program increases the operational safety for its carrier-members' vessels as well as for crews, port infrastructure, and labor. *See* Response at 8. WSC also explains that it has used the authority in this provision to establish best practices and fact-based studies on safety hazards, such as pest contamination, and partnered with governmental customs and law enforcement agencies to prevent illicit trafficking. *See id.* at 8-9. The collaboration by WSC's carrier-members within the Agreement sharing information and resources, as appropriate, developing tools, and improving collective knowledge sources is highly valuable when it results in better safety outcomes for cargo-carrying vessels. The Commission finds that these activities are closely related and intertwined with the operations of WSC's ocean carrier-members.

WSC also inserts new authorities into this provision relating to the "safety and security of seafarers," "monitoring stowaways onboard vessels, which may endanger the crew," and creating and maintaining "databases or other data visualization tools related to seafarer well-being, safety, or security matters." *See* Ex. B at 2. WSC's explains these topics are within the bounds of a "cooperative working arrangement" because "[s]eafarer work requires a safe and secure environment, and the absence of a safe environment greatly impacts the ability of ocean carriers to operate." Response at 9-10. While this explanation is rather perfunctory, the Commission finds that common carriers sharing information (including through databases) and creating voluntary best practices on "the safety and security of seafarers during voyage" is closely related to carriers' operations, which depend on crews being able to operate in safe workplaces aboard their vessels.

Overall, the Commission has determined that WSC has satisfied its burden to show that this provision, including preexisting and new authorities, enabling WSC's carrier-members to exchange information, reach non-binding agreements, and create databases on these topics is within the scope of a "cooperative working arrangement" under § 40301(a)(5).

B. Other Provisions in WSC's Amended and Restated Agreement

The other significant change in the Amended and Restated Agreement is the removal of WSC's Bylaws as an appendix to the Agreement. *See* Ex. B at 15. WSC's justification for this removal is that "WSC's Bylaws are the governing document for WSC's work as a trade association and therefore under the Order are also outside of the bounds of what the Commission interprets as a [cooperative working arrangement] to be included in an FMC Agreement." Response at 4. To address this removal, WSC explains it also adds two provisions into the Amended and Restated Agreement that were previously part of the Bylaws, procedures on how an ocean common carrier may become a member of WSC and voting for actions undertaken by WSC's Board of Directors. *See* Response at 4; Ex. B at 16-17.

The Commission disagrees with WSC's assertion that its Bylaws are the governing document *only* for WSC's work as a trade association. As evidenced by the scope of activities that remain in the Amended and Restated Agreement, WSC will be undertaking a significant amount of conduct within the bounds of its Agreement with the FMC. WSC's Bylaws are relevant to the organization's complete scope of activity, both its trade association work and the activities within the new proposed Agreement. Indeed, the Amended and Restated Agreement confirms this understanding, stating "[t]he operation of WSC shall be governed, and this Agreement shall be administered, in accordance with the WSC Bylaws." Ex. B at 15. WSC did not propose changing this language as part of its revision, implying that the statement is still accurate. Furthermore, if the

Bylaws are not appended to WSC's filed Agreement, the Commission will lack visibility into any future changes to the Bylaws that may affect WSC's operations under its Agreement or the FMC's oversight of those operations. WSC's proposed modifications to add into its Agreement provisions from its current Bylaws relating to WSC membership and its Board of Directors' voting procedures are not sufficient to alleviate this concern.

Pursuant to the Commission's regulations governing filed agreements, an agreement must "set forth the specific authorities and conditions under which the parties to the agreement will conduct their operations and regulate the relationships among the agreement members." 46 C.F.R. § 535.402. The Bylaws dictate how WSC will conduct its operations pursuant to its Agreement, in addition to its trade association work, and therefore they must be included in WSC's Agreement. The Commission directs WSC to retain its Bylaws as an appendix to its Agreement when it submits its final Agreement to the Commission's e-filing platform to ensure compliance with the Commission's regulations.

III. CONCLUSION

Pursuant to the Commission's Order on Investigation (Doc. 3) (March 6, 2026), and in consideration of the Response of the World Shipping Council to Order on Investigation, the Commission hereby:

ORDERS that the World Shipping Council's Amended and Restated Agreement is within the FMC's jurisdiction pursuant to 46 U.S.C. § 40301(a)(5), as discussed in this Order, and

ORDERS that the World Shipping Council may submit its Amended and Restated Agreement via the FMC's e-filing platform, eAgreements, without the removal of WSC's Bylaws, Appendix B to its original Agreement, as discussed in this Order.

By the Commission.

David Eng
Secretary

EXHIBIT A

Original Title Page

WORLD SHIPPING COUNCIL AGREEMENT

A Cooperative Working Agreement

FMC Agreement No. 201349

Expiration Date: None

This Agreement Has Not Been Published Previously

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ARTICLE 1: NAME OF THE AGREEMENT

This agreement shall be known as the World Shipping Council Agreement (“the Agreement”).

ARTICLE 2: PURPOSES OF THE AGREEMENT

The World Shipping Council (“WSC”) is a trade association that provides a unified voice for the global liner shipping industry on public policy matters impacting the industry. Since its establishment in 2000, WSC has interfaced with governments and advocated industry positions with regard to laws, policies, rules and regulations of governments and international organizations affecting liner carriers, and increased governmental and public awareness of the importance, necessity and efficiency of liner carrier services. The members of WSC have decided to expand the scope of issues to be addressed by and within WSC to include certain issues which would arguably fall within the FMC’s jurisdiction. The purpose of this Agreement is to comply with the Shipping Act by authorizing the parties hereto to discuss, communicate, and cooperate with regard to all matters as set forth in this Agreement.

ARTICLE 3: PARTIES

The Parties to the Agreement are the individual ocean common carrier members of WSC, which are listed in Appendix A hereto (hereinafter referred to individually as a “Party” and jointly as the “Parties”), as may be amended from time to time.

ARTICLE 4: GEOGRAPHIC SCOPE

As a trade association, the geographic scope of this Agreement is defined by reference to the industry issues and policy matters upon which the WSC members are involved, rather than the specific markets and trades served by the Parties. This Agreement covers the general subject of international liner shipping worldwide, including in the U.S. international trades within the jurisdiction of the Federal Maritime Commission.¹

ARTICLE 5: AUTHORITIES

5.1 Under this Agreement, the Parties, between and among themselves, and with other members of WSC (see Articles 5.4 and 8.2) are authorized to exchange information, discuss, and reach voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices), with respect to any of the following matters:

(a) environmental and climate-related matters relating to vessel emissions (liquid, gas and/or solid), ship recycling, cold-ironing, ballast water exchange, plastics at sea, noise pollution, the protection of threatened and endangered species, vessel operations in environmentally sensitive regions (including the Arctic, Antarctic, and/or other areas where vessel operations may affect wildlife), requirements of or under consideration by state, national, regional or international governments or institutions relating to vessel fuel

¹ Although the activities described herein shall also be undertaken with respect to trades between countries other than the United States, such trades are not within the scope of the U.S. Shipping Act or the jurisdiction of the Federal Maritime Commission ("FMC") and therefore are not included in this Agreement.

types and usage, and the development and/or use of alternative vessel fuels and energy-efficient technologies.

(b) legal and regulatory matters relating to competition laws or antitrust laws and the application of same to the ocean transportation industry, including the adoption and/or maintenance of competition law exemptions for cooperative arrangements in liner shipping; trade, customs and security laws; regulation of liner shipping, cargo liability laws and/or treaties; import, export, or trade tariffs; and economic sanctions, laws or regulations.

(c) positions to be taken with respect to international agreements, treaties, and conventions (whether multi-lateral or bi-lateral) and/or national or supra-national laws relating to tonnage, income, or other taxes, or international trade (including the imposition of tariffs on imports and/or exports in any country or region).

(d) positions to be taken with respect to requirements of or under consideration by state, national, regional or international governments or institutions relating to transportation infrastructure; cargo and supply chain fluidity; port and terminal operations; inland operations impacting the provision of ocean and intermodal transportation services; cargo handling/processing infrastructure and facilities; canal operations and toll systems; and related industry practices or policies.

(e) safety and security issues relating to the packing, labeling, stowage and handling of dangerous cargoes; the proper packing, stowage and lashing of cargo; piracy; vessel and crew security and health, including positions to be

taken in response to requirements of or under consideration by state, national, regional or international governments or institutions relating to global pandemics; screening, scanning and/or weighing cargo; pest infestation of cargo, containers and/or vessels; security and customs requirements (including crew immigration); counterfeit goods; smuggling of contraband; human or wildlife trafficking; containers lost at sea; vessel fires; vessel automation; and technological advancements in vessel operation and navigation.

(i) To reduce the safety risks to crews, vessels, other cargo, and the marine environment created by the carriage of undeclared or otherwise non-compliant dangerous goods, the Parties, between and among themselves and with other members of WSC, are authorized to: (A) discuss and agree upon voluntary best practices relating to minimum safety standards for the screening and inspection of dangerous goods cargoes, which the individual Parties and other members of WSC may choose to adopt and implement; (B) establish and administer, either directly and/or through one or more third-party contractors, a common digital solutions tool relating to cargo screening processes, technologies, and methods, including the provision by the Parties and other members of WSC of cargo booking data and information and cargo documentation to a third party contractor, and checking such cargo booking data and information and cargo documentation against shared keywords libraries, Optical Character Recognition systems, and background checks, provided that no cargo booking data and information and cargo documentation shall be exchanged directly between and among the Parties and/or other members of WSC, participation in any common digital solutions tool shall be

adopt and implement their own cargo screening processes, technologies, and methods in lieu of or in addition to any common digital solutions tool; and (C) create and maintain, either directly and/or through one or more third-party contractors, databases of shippers and cargo inspection companies that demonstrate conformance with such minimum safety criteria as may be established and/or revised by the Parties and other members of WSC from time to time, provided that no commercially sensitive information shall be exchanged between and among the Parties and/or other members of WSC related to any such database and that each Party and other member of WSC shall at all times be free to individually determine those entities with which it does business and (D) create and maintain, either directly and/or through one or more third-party contractors, databases of incidents relating to the identification of undeclared or otherwise non-compliant goods identified within this section 5.1(e), including the type, date, and root cause of the incident, commodities involved in the incident, and the ports of loading/discharge, provided that no commercially sensitive information shall be exchanged between or among the Parties and/or other members of WSC related to any such database. Parties participating in any voluntary program contemplated by subsections (A), (B), (C), and D of this section 5.1(e) will enter individually into contractual arrangements with any third party contractor(s).

(f) positions to be taken with respect to requirements of or under consideration by state, national, regional or international governments, institutions, and standards bodies relating to information technology, data submission standards, customs matters (including container inspection and

monitoring devices, or electronic bills of lading and other transportation related documents; provided that the Parties shall not develop or adopt digital standards for the format, content, transmission, or use of digital information.

(g) activities covered by Article 6 hereto.

5.2 The Parties hereto, acting through WSC are authorized to discuss and take common positions relating to the subjects within the scope of Articles 5.1 with industry stakeholders (such as ocean carriers and other industry organizations, cargo owners, ocean transportation intermediaries, customs brokers, terminal operators, and inland carriers or providers of services relating to ocean transportation, such as cargo surveyors, security companies, pilots, tug operators, and line handlers); provided, however, that all common positions

reached by the Parties hereto acting through WSC shall be entirely voluntary, and no Party shall be bound by any such common position, and provided further that nothing herein authorizes the Parties hereto to engage in any joint commercial negotiations with any stakeholder or service provider, vendor or cargo interest, except as provided in section 5.1(e) of this agreement.

5.3 Nothing in this Agreement shall be construed as obligating any Party to discuss, provide or exchange any information with any other Party or Parties. If any discussion or exchange of information results in the Parties' adoption of any voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices), those agreements shall be subject to the requirements of all applicable laws and to the right of each Party to independent action and to necessary approvals or requirements of Governments.

5.4 Nothing in this Agreement authorizes the Parties to discuss or agree upon: (a) the vessel capacity to be deployed by any of them, current, future or proposed; or (b) the terms and conditions under which any member provides ocean transportation services to its customers.

5.5 It is understood that to the extent any entity not a person subject to the Shipping Act of 1984, as amended, that is a member of WSC joins in activities of the Parties under this Agreement, such participation does not bring such entity(ies) under the FMC's jurisdiction, nor does it confer antitrust immunity on the non-regulated entity under the Shipping Act; provided that the participation of such non-regulated entities in activities under the Agreement is

understood to have no effect on the regulatory jurisdiction of the FMC or the antitrust immunity conferred by the Shipping Act on the Parties for their activities under this Agreement.

ARTICLE 6: TRADE ASSOCIATION ACTIVITIES

Since it was established as a non-profit corporation and trade association, WSC has undertaken and will continue to undertake certain public policy activities and initiatives on behalf of its members that are constitutionally protected and exempt from the U.S. antitrust laws under the decisions in *Noerr-Pennington* and its progeny.

ARTICLE 7: ADMINISTRATION OF AGREEMENT

7.1 The operation of WSC shall be governed, and this Agreement shall be administered, in accordance with the WSC Bylaws, attached hereto as Appendix B.

7.2 The Parties acting through WSC may from time to time establish such standing and/or ad hoc councils, committees, or working groups as they deem necessary or desirable, as set forth in Appendix B.

7.3 Upon action taken by the Parties hereunder, the WSC Secretariat and Agreement counsel are hereby authorized to prepare amendments to this Agreement and information relating thereto, and to execute and file same with the Federal Maritime Commission.

ARTICLE 8: MEMBERSHIP

8.1 Any ocean common carrier meeting the WSC member eligibility criteria established pursuant to Appendix B may become a party to this Agreement.

8.2 All WSC members that are ocean common carriers shall be Parties to this Agreement. Those members of WSC that are not ocean common carriers will not be Parties to this Agreement. Membership in WSC may be held by an entity that is not an ocean common carrier in its own right, but which is the parent company of one or more ocean common carriers. In such cases, the parent company shall be the member of WSC and the ocean common carrier(s) shall be party to this Agreement.

8.3 This Agreement shall be amended to reflect the addition of any new members to WSC or the resignation of any members from WSC.

ARTICLE 9: VOTING

9.1 Except as otherwise provided herein, voting shall be in accordance with Appendix B. Except as otherwise provided in Article 8.3, amendments to this Agreement shall require a three-quarters vote of the Parties.

9.2 All actions taken by the Parties hereunder acting through WSC, including discussion or exchange of information, participation in any standing and/or ad hoc councils, committees, or working groups, and adoption of any voluntary, non-binding agreements and/or common positions relating to the subjects within the scope of Articles 5.1, shall be entirely voluntary and no Party shall be bound by any such actions.

ARTICLE 10: DURATION AND TERMINATION

10.1 This Agreement shall become effective on the date it enters into effect under the U.S. Shipping Act of 1984, as amended, and shall remain in effect indefinitely thereafter.

10.2 This Agreement may be terminated by a vote of three-quarters of the Parties.

ARTICLE 11: GENERAL PROVISIONS

11.1 This Agreement does not create an association, joint venture, partnership, employment relationship, or other agency relationship between or among any of the Parties hereto or between any Party hereto and any person acting in connection with this Agreement. Neither does it create any entity with a legal personality or give rise to any joint liability or indemnity obligation on the part of any Party, nor does any Party authorize acceptance of service of process by anyone on its behalf.

11.2 If any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of law or public policy, all other terms and provisions of this Agreement shall nonetheless remain in full force and effect. Upon a determination that any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of law or public policy, the Parties shall negotiate in good faith to modify this Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable

manner in order that the activities contemplated hereby be undertaken as
originally contemplated to the fullest extent possible.

[SIGNATURE PAGE FOLLOWS]

SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have caused this Agreement to be
executed by their duly authorized representatives as of this 27th day of
February 2026.

COSCO SHIPPING LINES CO.,
ORIENT OVERSEAS CONTAINER LINE
LTD., and OOCL (EUROPE) LIMITED
(acting as a single party)



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

CMA CGM S.A., APL CO. PTE LTD.,
AMERICAN PRESIDENT LINES LLC
and ANL SINGAPORE PTE LTD.
(acting as a single party)



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

CROWLEY CARIBBEAN SERVICES, LLC
and CROWLEY LATIN AMERICA
SERVICES, LLC (acting as a single party)



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

EVERGREEN MARINE CORPORATION
(TAIWAN) LTD.



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

SIGNATURE PAGE (continued)

HAPAG-LLOYD AG

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

HMM COMPANY LIMITED

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

INDEPENDENT CONTAINER LINE, LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

KAWASAKI KISEN KAISHA LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

MAERSK A/S and HAMBURG
SUDAMARIKANISCHE
DAMPFSCHIFFFAHRTS
GESELLSCHAFT KG
(acting as a single party)

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

MSC MEDITERRANEAN
SHIPPING COMPANY SA

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

MITSUMI O.S.K. LINES, LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

NIPPON YUSEN KAISHA

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

SIGNATURE PAGE (continued)

OCEAN NETWORK EXPRESS
PTE LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

WALLENIUS WILHELMSSEN
OCEAN AS

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

WAN HAI LINES LTD. and
WAN HAI LINES (SINGAPORE)
PTE LTD. (acting as a single party)

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

YANG MING MARINE TRANSPORT CORP.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

ZIM INTEGRATED SHIPPING
SERVICES, LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

MATSON NAVIGATION COMPANY, INC.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

SWIRE SHIPPING PTE. LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

EMIRATES SHIPPING LINE FZE

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

HÖEGH AUTOLINERS AS

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

PARTIES

COSCO SHIPPING LINES CO., LTD.,
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OOCL (EUROPE) LIMITED (acting as a single party)
378, Da Ming Road (East)
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CROWLEY LATIN AMERICA SERVICES, LLC
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M Square Sheikh Khalifa Bin Zayed Street,
Al Mankhool Dubai, UAE

HÖEGH AUTOLINERS AS
Drammensveien 134, Skoyen
0212 Oslo Norway

BYLAWS
OF
WORLD SHIPPING COUNCIL

ARTICLE ONE
OFFICES

The corporation is organized under the laws of the District of Columbia and may have such offices as the board of directors may determine from time to time.

ARTICLE TWO
PURPOSE

Section 1. Purpose. The purpose of the corporation is to establish a unified voice for the global liner shipping industry, including container and roll-on/roll-off carriers, and promote and improve business conditions for liner carriers by studying and advocating industry positions with regard to laws, regulations, policies, rules and guidelines of governments and international organizations, and increasing governmental and public awareness of the importance, necessity and efficiency of liner carrier services.

Section 2. Excluded Items. The corporation shall not become involved in or take positions on issues related to U.S.-flag vessels, such as subsidies to U.S.-flag vessels, cargo preferences for U.S.-flag vessels, or the exclusive right of U.S.-flag vessels to engage in the U.S. domestic trades. The corporation shall not be used by a member or members to discuss or agree upon commercial or operational matters including, but not limited to, transportation rates, charges and services offered by members to their customers. This Section 2 may be amended only by unanimous vote of all the members entitled to vote.

ARTICLE THREE
MEMBERS

Section 1. Classes of Members. There shall be one class of members.

Section 2. Eligibility of Members. Any liner carrier owning, operating or chartering vessels in international trade that desires to become a member of the corporation shall submit a written application to the corporation. Each application shall be considered by the board of directors and such membership shall be approved upon a three-quarters (3/4) vote of the board of directors. Applicants whose applications are so approved shall become members of the corporation on payment of the required dues.

Section 3. Member Voting Rights. Each member shall be entitled to one vote on each matter submitted to a vote of the members.

Section 4. Termination of Membership. Any member may be suspended or expelled either for cause or if that member is in default in the payment of dues, or terminated if that member becomes ineligible for membership, upon a three-quarters (3/4) vote of the board of directors.

Section 5. Resignation/Financial Commitment. Any member may resign at any time on no less than six (6) months' notice by sending a written notice of resignation notifying the Chair of the board of directors.

Section 6. Reinstatement. Upon written request, and a three-quarters (3/4) vote of the board of directors, a former member may be reinstated to membership on such terms as the board of directors may reasonably deem appropriate.

Section 7. Transfer of Membership. Membership in this corporation is not transferable or assignable except as approved by a three-quarters (3/4) vote of the board of directors.

Section 8. FMC Agreement. Members that are ocean common carriers within the meaning of the U.S. Shipping Act, as amended, shall be parties to the cooperative working agreement initiated by the corporation that will be filed with the Federal Maritime Commission ("FMC"). Members that are not ocean common carriers will not be parties to any such FMC Agreement. Actions taken by the parties to the FMC Agreement shall be voluntary, and no party to the FMC Agreement shall be bound by any action taken thereunder.

ARTICLE FOUR MEETINGS OF MEMBERS

Section 1. Annual Meeting. An annual meeting of the members shall be held for the purpose of electing directors and for the transaction of such other business as may come before the meeting. All member meetings shall comply with applicable legal and regulatory requirements. Annual meetings may be held, and members may individually participate in, an annual meeting physically in person or remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons participating in the meeting can speak and are able to hear one another. Such participation shall constitute presence in person at the meeting. The chosen forum of the annual meeting shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.

Section 2. Special Meetings. Special meetings of the members may be called by the Chair of the board of directors, a three-quarters (3/4) vote of the board of directors, any two (2) members, or the president and CEO of the corporation at a place designated by the board of directors. Special meetings may be held, and members may individually participate in, a special meeting physically in person or remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons

participating in the meeting can speak and are able to hear one another. Such participation shall constitute presence in person at the meeting. The chosen forum of the special meeting shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.

Section 3. Proxies. At any meeting of members, a member may vote by proxy executed in writing by the member or by his duly authorized attorney in fact.

Section 4. Member Decisions. A three-quarters (3/4) vote of the members who choose to exercise their vote option at a meeting in which there is a quorum shall be required for any act of the members taken at a meeting, unless the act of a greater number is required by law or by these Bylaws. Decisions on positions advocated or developed by the corporation ("External Matters") shall define the position of the corporation, but no such decision shall be binding on any member. For the avoidance of doubt, no decision on External Matters taken by the Corporation shall limit or restrict any member from taking a different position on any such External Matters. For purposes of clarity, External Matters shall not include internal governance or administrative matters of the corporation, such as budget and dues, election of directors or a board chair, approval of new members or termination of current members, and changes to the Bylaws.

Section 5. Quorum. A minimum of sixty percent (60%) of all the members shall constitute a quorum for the transaction of business at any meeting of the members.

Section 6. Notice. Notice stating the place, day and hour of any meeting of members shall be given at least ten (10) days prior to such meeting by written notice delivered personally, via courier delivery service (*e.g.* Federal Express), by email or other electronic means. If sent by electronic means, the notice shall be deemed delivered on the date of transmission if such date is a business day, or otherwise shall be deemed delivered on the immediate next business day. The purpose or purposes for which the meeting is called shall be stated in the notice. In circumstances requiring urgent actions, this notice requirement can be waived by a three-quarters (3/4) vote of the members by email or other electronic means.

ARTICLE FIVE BOARD OF DIRECTORS

Section 1. General Powers. The affairs of the corporation shall be managed by the board of directors.

Section 2. Number, Tenure, Qualifications, and Chair and Vice-Chair.

a. The corporation shall have a minimum of seven (7) directors and a maximum of twenty (20) directors. All members shall be entitled to designate one (1) representative to serve as a director on the corporation's board of

directors. Should the board be comprised of the maximum twenty (20) directors, any additional members not already on the board shall be entitled to designate a representative to serve as a director on a first-come, first served basis as soon as a board seat becomes available. Member representatives that meet the criteria set forth in subsection 2(b) herein are permitted to nominate themselves to serve as a director. Members shall notify the Chair of the board of directors of their self-nominations, who shall further notify the other directors. Unless a maximum of twenty (20) directors is reached, self-nominations to serve on the board shall be effective upon notification to the board of directors.

b. Participation as a director of the corporation shall be available to any chief executive officer or equivalent of any member in good standing. Absent extenuating circumstances, members shall take all reasonable efforts to provide their CEO or equivalent as a director. In the event a CEO or equivalent of a member anticipates being unable to participate at the Board, the member CEO or equivalent may nominate (1) other representative from the member to sit on the board as a director in the CEO or equivalent's absence. This representative must possess decision-making authority for the member in order to participate in Board sessions. A member may not designate any other individual to sit on and participate in Board sessions except for the one (1) representative provided for in this section.

All CEO or equivalent representatives on the board shall continue to hold their position as director until their successor is appointed. Any non-CEO participant on the board shall be subject to a renewable term of three (3) years, or shorter at the member's direction. Directors need not be residents of the District of Columbia.

c. The board of directors shall, by a three-quarters (3/4) vote, elect a chair and vice-chair of the board of directors, each of whom shall serve at least a two (2) year term and, in no event serve longer than a three (3) year term. The chair of the board of directors shall preside over all meetings of the members and board of directors. In the absence of the chair at such meeting, the vice-chair shall preside. In the absence of both the chair and vice-chair, the board shall designate an acting chair to preside at such meeting, which may be the President and CEO. The chair and vice-chair can be removed by a three-quarters (3/4) vote of the board of directors at any time.

Section 3. Regular Meetings. A regular meeting of the board of directors shall be held, at least twice on an annual basis. The board of directors shall undertake all efforts to ensure that at least one (1) of the regular meetings occurs in person, at a location to be determined by the board of directors. All meetings of the board of directors shall comply with applicable legal and regulatory requirements. A regular board meeting may be held, and directors may individually participate in, a regular board meeting physically in person or remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons participating in the meeting are able to speak and hear one another. Such participation shall constitute presence in person at the meeting. The chosen forum of the regular meeting of the board shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.

Section 4. Special Meetings. Special meetings of the board of directors may be called by or at the request of the chair, vice-chair, any two (2) directors, or the president and CEO and shall be held at such place as the board may determine. A special board meeting may be held, and directors may individually participate in, a special board meeting physically in person or

remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons participating in the meeting are able to speak and hear one another. Such participation shall constitute presence in person at the meeting. Additionally, upon the request of the chair, vice-chair, any two (2) directors, or the President and CEO, and at the approval of the chair in his or her reasonable discretion, the board of directors may consider and vote on individual measures by means of e-mail correspondence without the need to meet in-person or remotely. In this context, (i) all members of the board of directors shall be deemed present for the proposed vote upon receipt of the e-mail communication, (ii) the President and CEO, or his or her designee, shall provide an explicit time period in which members may submit votes, and (iii) the lack of a response by a member of the board of directors in the applicable time period shall be considered a vote against the proposed action. At the conclusion of any vote conducted through e-mail correspondence, the President and CEO shall provide a summary to the board of directors of the voting results on an aggregated basis. The chosen forum of the special meeting of the board shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.

Section 5. Limitation on Alternates. A director may not delegate or assign to any other person the right to participate in Board meetings or to cast votes. Notwithstanding the preceding sentence, a CEO or equivalent may replace a director with less executive authority from the same member or member's affiliate for a particular meeting provided that at least five days' advance notice is provided to the chair.

Section 6. Board Decisions. A three-quarters (3/4) vote of the directors who choose to exercise their vote option at a meeting in which there is a quorum shall be required for all acts of the board taken at a meeting, unless the act of a greater number is required by law or by these Bylaws.

Section 7. Quorum. The presence of fifty percent (50%) of all directors shall constitute a quorum; provided, however, that if the board of directors is comprised of seven (7) directors, then three (3) directors shall constitute a quorum.

Section 8. Notice. Notice of any meeting of the board of directors shall be given at least ten (10) days prior to such meeting by written notice delivered personally, via courier delivery service (e.g. Federal Express), by email or other electronic means. If sent by electronic means, the notice shall be deemed delivered on the date of transmission if such date is a business day, or otherwise shall be deemed delivered on the immediate next business day. The attendance of a director at any meeting shall constitute a waiver of notice of such meeting, except where a director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened. The business to be transacted at the meeting need not be specified in the notice or waiver of notice of such meeting, unless specifically required by law or by these Bylaws. In circumstances requiring urgent actions, this notice requirement can be waived by a three-quarters (3/4) vote of the board of directors by email or other electronic means.

ARTICLE SIX
OFFICERS AND STAFF

Section 1. Officers. The officers of the corporation shall be a president and CEO, one (1) or more vice presidents (the number thereof to be determined by the board of directors), and a treasurer. Any two (2) or more offices may be held by the same person, except the president and treasurer.

Section 2. Election and Term of Office. All the officers of the corporation shall be elected by a three-quarters (3/4) vote of the board of directors, for terms to be decided by the board of directors. All officers,

including the president and CEO, shall hold office until their successors have been duly elected.

Section 3. Removal. Any officer elected or appointed by the board of directors may be removed by a three-quarters (3/4) vote of the board of directors whenever in its judgment the best interests of the corporation would be served thereby.

Section 4. Vacancies. A vacancy in any office because of death, resignation, removal, disqualification or otherwise, may be filled by the board of directors for the unexpired portion of the term.

Section 5. Powers and Duties. The officers shall have such powers and shall perform such duties as may from time to time be specified in resolutions or other directives of the board of directors. In the absence of such specifications, each officer shall have the powers and authority and shall perform and discharge the duties of officers of the same title serving in nonprofit corporations having the same or similar general purposes and objectives as this corporation.

Section 6. Staff. The corporation may appoint designated professional staff to assist the officers in the day-to-day functions of the corporation as decided by the board of directors.

ARTICLE SEVEN

COMMITTEES OF DIRECTORS AND SUBJECT MATTER COUNCILS

Section 1. Board Committees. The board of directors may, by a three-quarters (3/4) vote of the directors, designate one (1) or more committees, each of which shall consist of two (2) or more directors, which committees, to the extent provided in such resolution, shall have and exercise the authority of the board of directors in the management of the corporation; but the designation of such committees and the delegation thereto of authority shall not operate to relieve the board of directors, or any individual director, of any responsibility imposed on it or the individual director by law.

Section 2. Functional Councils.

a. The board of directors may, by a three-quarters (3/4) vote of the directors, establish, abolish and define the subject matter scope of any such functional councils as it deems necessary and proper to carry out the purposes of the corporation.

b. The functional councils shall be made up of member representatives with appropriate expertise and responsibilities within their respective companies. In coordination with the president and CEO, officers, and designated professional staff of the corporation, and under the ultimate direction of the board of directors, the councils shall coordinate programs, policies, regulatory initiatives, public positions of the corporation and other actions to fulfill the purposes of the corporation. In addition to furthering the

substantive work of the corporation, the councils shall provide a forum for all members to share their views on policy matters properly within the scope of the corporation's work. All actions by a council shall require a three-quarters (3/4) vote of the members of the council who choose to exercise their vote option. No member shall be required to participate on any functional council established by the board of directors, or be required to vote on any decisions to be made or actions to be taken by a functional council. All actions taken by any functional council shall be voluntary, and no member participating on any functional council shall be bound by such actions.

c. The following councils are hereby authorized as of the effective date of this Article Seven, Section 2:

- i. Environment and Climate
- ii. Safety and Security
- iii. Industry Structure
- iv. Communications and Public Relations

d. Each member is entitled to designate one representative and one alternate representative for each council. The members of each council shall by nomination and three-quarters (3/4) vote (one member/one vote) choose a chair to coordinate and organize the work of each council. The council chairs shall serve for two (2) years. Councils may meet in person or by means of telephone conference, video conference, or any other means of communication by which all persons participating in the meeting can speak and are able to hear one another. The council chair shall call meetings as required in order to conduct the business of the council, with the frequency, format and location of such meetings designed to conduct the necessary business of the council with due consideration to minimizing unnecessary cost and disruption for council members and to facilitating participation of all members. All council meetings shall comply with any legal or regulatory requirements.

e. Each council shall, through its chair and in coordination with the president and CEO, report at least once per year to the board of directors regarding the work of that council. The chair of each council, the chair of the board, the president and CEO and any member representative or alternate on any council may elevate an issue to the board of directors in any case in which any such individual believes that such issue is of such legal, policy, financial or operational importance that it warrants the consideration of the board of directors.

f. In order to ensure that the corporation remains agile and responsive to issues of importance to the membership, the president and CEO shall communicate fully and regularly with the chair of each council regarding matters that require the attention of that council.

ARTICLE EIGHT

CONTRACTS, CHECKS, DEPOSITS AND GIFTS

Section 1. Contracts. The board of directors may authorize any officer or agent of the corporation to enter into any contract or execute and deliver any

instrument in the name of and on behalf of the corporation, and such authority may be general or may be confined to specific instances.

Section 2. Checks, Drafts, or Orders. All checks, drafts or orders for the payment of money, notes or other evidences of indebtedness issued in the name of the corporation, shall be signed by such officer(s) or agent(s) of the corporation, and in such manner as shall from time to time be determined by the board of directors. In the absence of such determination by the board of directors, such instruments shall be signed by the treasurer or the president and CEO of the corporation.

Section 3. Deposits. All funds of the corporation shall be deposited from time to time to the credit of the corporation in such banks, trust companies or other depositaries as the board of directors may select.

Section 4. Gifts. The board of directors may accept on behalf of the corporation any contribution, gift, bequest or devise for any purpose of the corporation; provided such gift complies with applicable legal and regulatory requirements.

ARTICLE NINE CERTIFICATES OF MEMBERSHIP

Section 1. Certificates of Membership. The board of directors shall, upon the request of any member, provide for the issuance of certificates evidencing membership in the corporation, which certificates shall be in such form as may be determined by the board of directors. Such certificates shall be signed by the president and CEO, vice president or treasurer and shall be sealed with the seal of the corporation.

Section 2. Issuance of Certificates. When a member has been elected to membership and has paid the dues that may then be required, a certificate of membership shall be issued in its name and delivered to it by or on behalf of an officer.

ARTICLE TEN BOOKS AND RECORDS

The corporation shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of its members, board of directors and any committees or subject matter councils, and shall keep at the principal office a record giving the names and addresses of the members entitled to vote. All books and records of the corporation may be inspected by any member, or his agent or attorney, for any proper purpose at any reasonable time.

ARTICLE ELEVEN FISCAL YEAR

The fiscal year of the corporation shall be the annual period of August 1 – July 31, unless otherwise decided by the board of directors.

ARTICLE TWELVE
DUES

Section 1. Annual Dues. There will be five (5) categories or tiers of membership dues, which are based on the global container capacity (TEU) operated (owned and chartered) by each member, as calculated by a publicly available source to be determined by the board of directors. Members that do not operate cellular containerships shall be in the lowest membership dues tier (Tier 5). Decisions with respect to dues shall be made by a three-quarters (3/4) vote of the board of directors.

Section 2. Payment of Dues. Dues shall be billed and payable annually in advance for each annual period. Interest at the rate of ten percent (10%) per annum shall be charged on all dues payments that are delinquent for more than thirty (30) days, and such interest may only be compromised or waived for good cause as determined by the board of directors.

Section 3. Annual Review of TEU Volume for Purposes of Adjusting Dues. At the beginning of every annual period (August 1 – July 31), the dues schedule for the coming annual period shall be adjusted based on: i) the approved budget for the coming annual period, and ii) the global container capacity (TEU) operated (owned and chartered) by each member on May 1 as reported by a publicly available source to be determined by the board of directors.

Section 4. Default and Termination of Membership. When any member is delinquent in the payment of dues for a period of three (3) months, it shall not be entitled to vote and its membership may be terminated by the board of directors as provided hereinabove.

ARTICLE THIRTEEN
SEAL

The board of directors shall provide a corporate seal.

ARTICLE FOURTEEN
WAIVER OF NOTICE

Whenever any notice is required to be given under the provisions of the District of Columbia Nonprofit Corporation Act or under the provisions of the Articles of Incorporation or the Bylaws of the corporation, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be deemed equivalent to the giving of such notice.

ARTICLE FIFTEEN
BUDGET

At least thirty (30) days before the regular meeting of the board of directors, or within such period as the board of directors upon reasonable

notice designates, the president and CEO of the corporation shall submit an annual budget for the upcoming annual period to the board of directors for their approval. The budget shall be approved by a three-quarters (3/4) vote of the board of directors. If a proposed budget is not approved, the president and CEO shall present a revised budget for consideration taking into account the points raised by board members during discussion of the prior proposal. In the event that a budget for the upcoming fiscal year is not approved, the budget and dues levels approved for the then-current fiscal year shall become the budget and dues level for the upcoming fiscal year until such time as that budget may be amended by three-quarters (3/4) vote of the board of directors.

ARTICLE SIXTEEN
AMENDMENT OF BYLAWS AND ARTICLES OF INCORPORATION

Except as otherwise provided for herein, these Bylaws and the Articles of Incorporation of the corporation may be altered, amended or repealed, and new Bylaws or Articles may be adopted by a three-quarters (3/4) vote of the members.

ARTICLE SEVENTEEN
DISSOLUTION

The corporation may be dissolved by a three-quarters (3/4) vote of all the members. Upon dissolution, all the assets remaining after satisfying all debts, liabilities and obligations of the corporation shall be distributed to the members on a pro rata basis of their contributions; provided, however, that no member shall receive a distribution exceeding the total amount of dues it paid to the corporation.

#

EXHIBIT B

WORLD SHIPPING COUNCIL AGREEMENT

A Cooperative Working Agreement

FMC Agreement No. 201349

World Shipping Council Agreement
FMC Agreement No. 201349
(2nd Edition)

(2nd Edition)

Expiration Date: None

This Agreement Has Not Been Published Previously

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~~World Shipping Council Agreement~~
~~FMC Agreement No. 201349~~
~~Original Page No. 1~~

ARTICLE 1:- NAME OF THE AGREEMENT

This agreement shall be known as the World Shipping Council Agreement (“the Agreement”).

ARTICLE 2:- PURPOSES OF THE AGREEMENT

The World Shipping Council (“WSC”) is a trade association that provides a unified voice for the global liner shipping industry on public policy matters impacting the industry. ~~Since its establishment in 2000, WSC has interfaced with governments and advocated industry positions with regard to laws, policies, rules and regulations of governments and international organizations affecting liner carriers, and increased governmental and public awareness of the importance, necessity and efficiency of liner carrier services. The members of~~ While WSC will continue to undertake trade association, regulatory, and policy matters, which are not subject to the U.S. Shipping Act or the Federal Maritime Commission’s (FMC) jurisdiction, this Agreement authorizes the members of WSC to engage in certain issues and undertake certain cooperative activities involving operational matters that fall within the U.S. Shipping Act and the FMC’s jurisdiction as cooperative working arrangements.

~~WSC have decided to expand the scope of issues to be addressed by and within WSC to include certain issues which would arguably fall within the FMC’s jurisdiction. The purpose of this Agreement is to comply with the Shipping Act by authorizing the parties hereto to discuss, communicate, and cooperate with regard to all matters as set forth in this Agreement.~~

ARTICLE 3:- PARTIES

The Parties to the Agreement are the individual ocean common carrier members of WSC, which are listed in Appendix A hereto (hereinafter referred to individually as a “Party” and jointly as the “Parties”), as may be amended from time to time.

ARTICLE 4:- GEOGRAPHIC SCOPE

~~As a trade association, the geographic scope of this Agreement is defined by reference to the industry issues and policy matters upon which the WSC members are involved, rather than the specific markets and trades served by the Parties.~~ This Agreement covers ~~the general subject of~~ international liner shipping trades worldwide, including ~~in~~ the U.S. international trades within the jurisdiction of the ~~Federal Maritime Commission.~~¹ FMC.¹

ARTICLE 5:- AUTHORITIES

5.1- Under this Agreement, the Parties, between and among themselves, and with other members of WSC (see Articles 5.4 and 8.2) are authorized to exchange information, discuss, and reach voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices), with respect to any of the following matters:

~~(a)~~—(a) environmental and climate-related matters relating to vessel emissions (liquid, gas and/or solid), ship recycling, cold-ironing, ballast water exchange, plastics at sea, noise pollution, the protection of threatened and

¹ Although the activities described herein shall also be undertaken with respect to trades between countries other than the United States, such trades are not within the scope of the U.S. Shipping Act or the jurisdiction of the ~~Federal Maritime Commission~~ FMC and therefore are not included in this Agreement.

endangered species, vessel operations in environmentally sensitive regions
(including the ~~Artie~~Arctic, Antarctic, and/or other areas where vessel operations
may affect wildlife), requirements of or under consideration by state, national,
regional or international governments or institutions relating to vessel fuel

types and usage, and the development and/or use of alternative vessel fuels
and energy-efficient technologies.

~~(b) legal and regulatory matters relating to competition laws or antitrust laws
and the application of same to the ocean transportation industry, including the
adoption and/or maintenance of competition law exemptions for cooperative
arrangements in liner shipping; trade, customs and security laws; regulation of
liner shipping, cargo liability laws and/or treaties; import, export, or trade
tariffs; and economic sanctions, laws or regulations.~~

~~(c) positions to be taken with respect to international agreements, treaties,
and conventions (whether multi-lateral or bi-lateral) and/or national or supra-
national laws relating to tonnage, income, or other taxes, or international trade
(including the imposition of tariffs on imports and/or exports in any country or
region).~~

~~(d) positions to be taken with respect to requirements of or under
consideration by state, national, regional or international governments or
institutions relating to (b) _____~~ transportation infrastructure; cargo and supply
chain fluidity; port and terminal operations; inland operations impacting the
provision of ocean and intermodal transportation services; cargo

handling/processing infrastructure and facilities; and canal operations and toll systems; ~~and related industry practices or policies.~~

~~(e)~~—(c) safety and security issues relating to the packing, labeling, stowage and handling of dangerous cargoes; the proper packing, stowage and lashing of cargo; piracy; vessel and crew security and health, including positions to be

taken in response to requirements of or under consideration by state, national, regional or international governments or institutions relating to global pandemics; the safety and security of seafarers during voyage as relates to laws and regulations implemented by local, national, or international governmental entities; monitoring stowaways onboard vessels, which may endanger the vessel or crew; screening, scanning and/or weighing cargo; pest infestation of cargo, containers and/or vessels; security and customs requirements (including crew immigration); counterfeit goods; smuggling of contraband; human or wildlife trafficking; containers lost at sea; vessel fires; vessel automation; and technological advancements in vessel operation and navigation.

The Parties, between and among themselves and with other members of WSC, are authorized to create and maintain, either directly and/or through one or more third-party contractors, databases or other data visualization tools relating to seafarer well-being, safety, or security matters as described within this section

5. 1(c), provided that no commercially sensitive information shall be exchanged between or among the Parties and/or other members of WSC related to any such database or similar tool.

To reduce the safety risks to crews, vessels, other cargo, and the marine environment created by the carriage of undeclared or otherwise non-compliant dangerous goods, the Parties, between and among themselves and with other members of WSC, are authorized to: (iA) discuss and agree upon voluntary best practices relating to minimum safety standards for the screening and inspection of dangerous goods cargoes, which the individual Parties and other members of WSC may choose to adopt and implement; (iiB) establish and administer, either directly and/or through one or more third-party contractors, a common digital solutions tool relating to cargo screening processes, technologies, and methods, including the provision by the Parties and other members of WSC of cargo booking data and information and cargo documentation to a third party contractor, and checking such cargo booking data and information and cargo documentation against shared keywords libraries, Optical Character Recognition systems, and background checks, provided that no cargo booking data and information and cargo documentation shall be exchanged directly between and among the Parties and/or other members of WSC, participation in any common digital solutions tool shall be voluntary, and each Party and other member of WSC shall at all times be free to adopt and implement their own cargo screening

~~esses~~processes, technologies, and methods in lieu of or in addition to any common digital solutions tool; ~~and (iii)(C)~~ create and maintain, either directly and/or through one or more third-party contractors, databases of shippers and cargo inspection companies that demonstrate conformance with such minimum safety criteria as may be established and/or revised by the Parties and other members of WSC from time to time, provided that no commercially sensitive information shall be exchanged between and among the Parties and/or other members of WSC related to any such database and that each Party and other member of WSC shall at all times be free to individually determine those

entities with which it does business. ~~Parties participating in any voluntary~~

~~program contemplated by subsections (i), (ii), and (iii); and (D) create and maintain, either directly and/or through one or more third-party contractors,~~

databases of incidents relating to the identification of undeclared or otherwise

non-compliant goods identified within this section 5.1(e c), including the type,

date, and root cause of the incident, commodities involved in the incident, and

the ports of loading/discharge, provided that no commercially sensitive

information shall be exchanged between or among the Parties and/or other members

of WSC related to any such database. Parties participating in any voluntary program

contemplated by subsections (A), (B), (C), and D of this

section 5.1(~~e~~ c) will enter individually into contractual arrangements with any third party contractor(s).

~~(f)—positions to be taken with respect to requirements of or under~~

~~consideration by state, national, regional or international governments,~~

~~institutions, and standards bodies relating to information technology, data~~

~~submission standards, customs matters (including container inspection and~~

*Article 5.1(c)(D)
is currently
pending
effectiveness

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FMC Agreement No. 201349

~~sealing), cybersecurity, safety or performance standards for electronic container monitoring devices, or electronic bills of lading and other transportation related documents; provided that the Parties shall not develop or adopt digital standards for the format, content, transmission, or use of digital information.~~
~~(g) —activities covered by Article 6 hereto.~~

5.2 The Parties hereto, acting through WSC are authorized to discuss and take common positions relating to the subjects within the scope of Articles

5.1 with industry stakeholders (such as ocean carriers and other industry

organizations, cargo owners, ocean transportation intermediaries, customs brokers, terminal operators, and inland carriers or providers of services relating to ocean transportation, such as cargo surveyors, security companies, pilots, tug operators, and line handlers); provided, however, that all common positions

reached by the Parties hereto acting through WSC shall be entirely voluntary, and no Party shall be bound by any such common position, and provided further that nothing herein authorizes the Parties hereto to engage in any joint commercial negotiations with any stakeholder or service provider, vendor or cargo interest, except as provided in section 5.1(e c) of this agreement.

5.3 Nothing in this Agreement shall be construed as obligating any

Party to discuss, provide or exchange any information with any other Party or Parties. If any discussion or exchange of information results in the Parties' adoption of any voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices), those agreements shall be subject to the requirements of all applicable laws and to the right of each Party to independent action and to necessary approvals or requirements of Governments.

5.4 Nothing in this Agreement authorizes the Parties to discuss or agree upon: (a) the vessel capacity to be deployed by any of them, current, future or proposed; or (b) the terms and conditions under which any member provides ocean transportation services to its customers.

5.5 It is understood that to the extent any entity not a person subject to the Shipping Act of 1984, as amended, that is a member of WSC joins in activities of the Parties under this Agreement, such participation does not bring such entity(ies) under the FMC's jurisdiction, nor does it confer antitrust immunity on the non-regulated entity under the Shipping Act; provided that the participation of such non-regulated entities in activities under the Agreement is

understood to have no effect on the regulatory jurisdiction of the FMC or the antitrust immunity conferred by the Shipping Act on the Parties for their activities under this Agreement.

ARTICLE 6: ~~TRADE ASSOCIATION ACTIVITIES~~

~~Since it was established as a non-profit corporation and trade association, WSC has undertaken and will continue to undertake certain public policy activities and initiatives on behalf of its members that are constitutionally protected and exempt from the U.S. antitrust laws under the decisions in *Noerr-Pennington* and its progeny.~~

ARTICLE 7: ~~ADMINISTRATION OF AGREEMENT~~

~~7.1-~~ The operation of WSC shall be governed, and this Agreement shall be administered, in accordance with the WSC Bylaws, ~~attached hereto as~~ Appendix B.

~~7.2-~~ The Parties acting through WSC may from time to time establish such standing and/or ad hoc councils, committees, or working groups as they deem necessary or desirable, ~~as set forth in Appendix B.~~

~~7.3-~~ Upon action taken by the Parties hereunder, the WSC Secretariat and Agreement counsel are hereby authorized to prepare amendments to this Agreement and information relating thereto, and to execute and file same with the Federal Maritime Commission.

ARTICLE ~~8~~:7: MEMBERSHIP

~~8.1 Any ocean common carrier meeting the WSC member eligibility criteria established pursuant to Appendix B may become a party to this Agreement.~~

87.1 Any liner ocean common carrier owning, operating, or chartering vessels in international trade that desires to become a member of WSC shall submit a written application to WSC, and each application shall be considered by the WSC board of directors and such membership shall be approved by a three-quarters (3/4) vote of the board of directors.

7.2- All WSC members that are ocean common carriers shall be Parties to this Agreement. Those members of WSC that are not ocean common carriers will not be Parties to this Agreement. Membership in WSC may be held by an entity that is not an ocean common carrier in its own right, but which is the parent company of one or more ocean common carriers. In such cases, the parent company shall be the member of WSC and the ocean common carrier(s) shall be party to this Agreement.

~~87.3-~~ This Agreement shall be amended to reflect the addition of any new members to WSC or the resignation of any members from WSC.

ARTICLE ~~9~~:8: VOTING

~~98.1 ——— Except as otherwise provided herein, voting~~ A three-quarters (3/4) vote of the directors who choose to exercise their vote option at a meeting in

which there is a quorum shall be ~~in accordance with Appendix B. Except as otherwise provided in Article 8.3,~~required for all acts of the board of directors of WSC, including amendments to this Agreement ~~shall require a three-quarters vote of the Parties, taken at a meeting.~~

~~98.2-~~ All actions taken by the Parties hereunder acting through WSC, including discussion or exchange of information, participation in any standing and/or ad hoc councils, committees, or working groups, and adoption of any voluntary, non-binding agreements and/or common positions relating to the subjects within the scope of Articles 5.1, shall be entirely voluntary and no Party shall be bound by any such actions.

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ARTICLE ~~10~~: 9: **DURATION AND TERMINATION**

~~10~~9.1 This Agreement shall become effective on the date it enters into effect under the U.S. Shipping Act of 1984, as amended, and shall remain in effect indefinitely thereafter.

~~10~~9.2- This Agreement may be terminated by a vote of three-quarters of the Parties.

ARTICLE ~~11~~: 10: **GENERAL PROVISIONS**

~~11~~10.1- This Agreement does not create an association, joint venture, partnership, employment relationship, or other agency relationship between or among any of the Parties hereto or between any Party hereto and any person acting in connection with this Agreement. Neither does it create any entity with a legal personality or give rise to any joint liability or indemnity obligation on the part of any Party, nor does any Party authorize acceptance of service of process by anyone on its behalf.

~~11~~10.2- If any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of law or public policy, all other terms and provisions of this Agreement shall nonetheless remain in full force and

effect. Upon a determination that any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of law or public policy, the Parties shall negotiate in good faith to modify this Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable manner in order that the - -

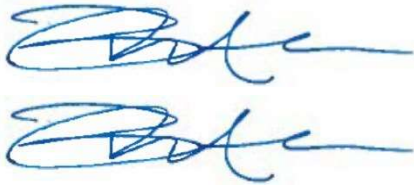
activities contemplated hereby be undertaken as originally contemplated to the fullest extent possible.

[SIGNATURE PAGE
FOLLOWS]

SIGNATURE PAGE

____IN WITNESS WHEREOF, the Parties have caused this Agreement to be
executed by their duly authorized representatives as of this —[DAY] day of
~~January~~[MONTH] 2026.

COSCO SHIPPING LINES CO.,____
ORIENT OVERSEAS CONTAINER LINE
LTD., and OOCL (EUROPE) LIMITED____
(acting as a single party)_____

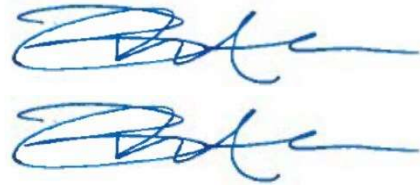


By:_____

Name: ~~Robert K. Magovern~~_____

Title: Attorney-in-Fact_____

CMA CGM S.A., APL CO. PTE LTD.,
AMERICAN PRESIDENT LINES LLC
and ANL SINGAPORE PTE LTD.
(acting as a single party)

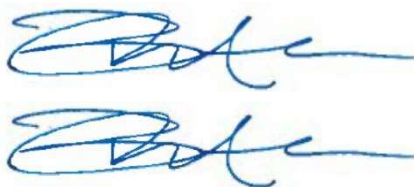


By:_____

Name: Robert K. Magovern

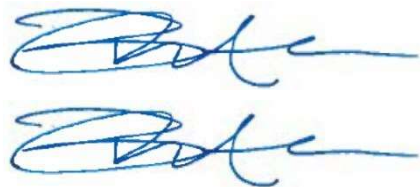
Title: Attorney-in-Fact

CROWLEY CARIBBEAN SERVICES, LLC
and CROWLEY LATIN AMERICA_____
SERVICES, LLC (acting as a single party)



By:_____

EVERGREEN MARINE CORPORATION
(TAIWAN) LTD.



By:_____

World Shipping Council Agreement
FMC Agreement No. 201349

Name: ~~Robert K. Magovern~~

Name: Robert K. Magovern

Title: ~~Attorney-in-Fact~~

Title: Attorney-in-Fact

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HAPAG-LLOYD AG
~~-LIMITED~~

By: 


Name: ~~-Robert K. Magovern~~

Title: Attorney-in-Fact

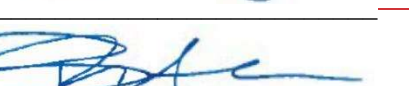
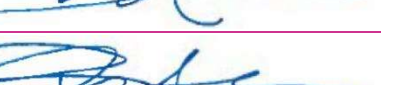
HMM
COMPANY
~~LIMITED~~

By: 


Name: Robert K. Magovern

Title: Attorney-in-Fact

INDEPENDENT CONTAINER LINE, LTD.
~~-KAISHA LTD.~~

By: 



Name: ~~-Robert K. Magovern~~

Title: Attorney-in-Fact

KAWASAKI KISEN ~~KAISHA LTD.~~


By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

MAERSK A/S and HAMBURG
~~SUDAMARIKANISCHE~~
SUDAMARIKANISCHE
DAMPFSCHIFFFAHRTS
GESELLSCHAFT KG
(acting as a single party)

MSC MEDITERRANEAN
~~SHIPPING COMPANY SA~~
SHIPPING
COMPANY SA

World Shipping Council Agreement
FMC Agreement No. 201349

By:  _____

By: 
 _____

By: _____ -  _____

Name: ~~-~~Robert K. Magovern

Name: Robert K.
Magovern

Title: Attorney-in-Fact _____

Title: Attorney-in-Fact

~~MITSUI O.S.K. LINES, LTD.~~

~~NIPPON YUSEN KAISHA~~

By:  _____

By:  _____

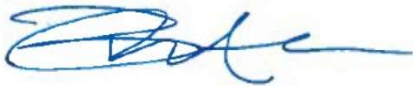
Name: ~~-~~Robert K. Magovern

Name: Robert K.
Magovern

Title: Attorney-in-Fact _____

Title: Attorney-in-Fact

SIGNATURE PAGE (continued)

By:  By: 

SIGNATURE PAGE (continued)

Name: ~~Robert K. Magovern~~

Name: ~~Robert K. Magovern~~

Title: ~~Attorney in Fact~~

Title: ~~Attorney in Fact~~

~~WAN HAI~~ MITSUI O.S.K. LINES, LTD. NIPPON
and YUSEN

~~YANG MING MARINE~~
~~TRANSPORT CORP.~~

KAISHA ~~WAN HAI LINES~~
~~(SINGAPORE)~~

~~PTE LTD. (acting as a single party)~~

By:  By: 

By:  By: 

Name: Robert K. Magovern

Name: Robert K.
Magovern

~~OCEAN NETWORK EXPRESS~~

Name: Robert K. Magovern

Title: Attorney-in-Fact

ZIM INTEGRATED
SHIPPING SERVICES,
LTD. ~~PTE LTD.~~

Name: Robert K.
Magovern

Title: Attorney-in-Fact

~~MATSON~~ NAVIGATION
COMPANY, INC.

~~WALLENIOUS~~
~~WILHELMSSEN~~

~~OCEAN AS~~



Title: Attorney-in-
FactName: Robert K.
Magovern

-Title: Attorney-in-
Fact

Name: Robert K.
Magovern

OCEAN NETWORK
EXPRESS WILHELMSSEN
Title: Attorney-in-Fact

WALLENIUS

Title: Attorney-in-Fact

World Shipping Council Agreement
FMC Agreement No. 201349



Name: Robert K. Magovern
Title: Attorney-in-Fact

Name: Robert K.
Magovern
Title: Attorney-in-Fact

PTE LTD.ZIM INTEGRATEDOCEAN AS
SHIPPING SERVICES, LTD.

MATSONNAVIGATION
COMPANY, INC.

By: _____

By: _____

By: _____

By: _____

WAN HAI LINESSWIRE
SHIPPING PTE. LTD.
and TRANSPORT
CORP.
WAN HAI LINES (SINGAPORE)
PTE LTD. (acting as a single
party)

-YANG MING
MARINE

EMIRATES SHIPPING
LINE FZE

World Shipping Council Agreement
FMC Agreement No. 201349




By: _____




By: _____

By: _____



By: _____

: _____

SIGNATURE PAGE (continued)

SWIRE SHIPPING PTE.- LTD.

EMIRATES SHIPPING
LINE FZE

Name: Robert K. Magovern

Name: Robert K. Magovern

Title: Attorney in Fact

Title: Attorney in Fact

~~HÖEGH AUTOLINERS AS~~



By: _____



By: _____

~~Name: Robert K.~~

Name: Robert K. Magovern

Name: Robert K. Magovern

Title: Attorney-in-Fact

Title: Attorney-in-Fact

~~Magovern~~

Title: Attorney in Fact

~~Substitute Original Page No. A-1~~

HÖEGH AUTOLINERS AS

By: _____



Name: Robert K. Magovern

Title: Attorney-in-Fact

PARTIES

COSCO SHIPPING LINES CO., LTD.,
ORIENT OVERSEAS CONTAINER LINE LTD., and
OOCL (EUROPE) LIMITED (acting as a single party)
378, Da Ming Road (East)
Shanghai, PRC

CMA CGM S.A., APL CO. PTE. LTD., AMERICAN
PRESIDENT LINES, LLC and ANL SINGAPORE PTE LTD.
(acting as a single party)
4 Quai d'Arenc
13002 Marseille

CROWLEY CARIBBEAN SERVICES, LLC and
CROWLEY LATIN AMERICA SERVICES, LLC
(acting as a single party)
9487 Regency Square Blvd. Jacksonville, FL 32225

EVERGREEN MARINE
CORPORATION (TAIWAN) LTD.
No. 166, Sec. 2, Minsheng East Road
Jhongstan Dist.,
Taipei 104, Taiwan

HAPAG-LLOYD AG
Ballindamm 25
D-20095 Hamburg
Germany

HMM COMPANY LIMITED
194 Yulgok-ro
Jongro-gu, Seoul 03127 Korea

INDEPENDENT CONTAINER LINE, LTD.
5620 Cox Rd
Glen Allen, VA 23060

~~Substitute Original Page No. A-2~~

PARTIES

KAWASAKI KISEN KAISHA LTD.

Iino Building, 2-1-1
Uchisaiwaicho, Chiyoda-ku,
Tokyo 100-8540, Japan

MAERSK A/S and HAMBURG SUDAMERIKANISCHE
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WALLENIOUS WILHELMSEN OCEAN AS

Strandveien 20
1364, Lysaker
Norway

WAN HAI LINES LTD. and

~~FMC Agreement No. 201349-006~~

~~Third Revised Page No. A-3~~

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(acting as a single party)
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HÖEGH AUTOLINERS AS
Drammensveien 134, Skoyen
0212 Oslo Norway

BYLAWS
OF
WORLD SHIPPING COUNCIL

ARTICLE ONE

OFFICES

~~The corporation is organized under the laws of the District of Columbia and may have such offices as the board of directors may determine from time to time.~~

ARTICLE TWO

PURPOSE

~~**Section 1. Purpose.** The purpose of the corporation is to establish a unified voice for the global liner shipping industry, including container and roll-on/roll-off carriers, and promote and improve business conditions for liner carriers by studying and advocating industry positions with regard to laws, regulations, policies, rules and guidelines of governments and international organizations, and increasing governmental and public awareness of the importance, necessity and efficiency of liner carrier services.~~

~~**Section 2. Excluded Items.** The corporation shall not become involved in or take positions on issues related to U.S. flag vessels, such as subsidies to U.S. flag vessels, cargo preferences for U.S. flag vessels, or the exclusive right of U.S. flag vessels to engage in the U.S. domestic trades. The corporation shall not be used by a member or members to discuss or agree upon commercial or operational matters including, but not limited to, transportation rates, charges and services offered by members to their customers. This Section 2 may be amended only by unanimous vote of all the members entitled to vote.~~

ARTICLE THREE

MEMBERS

~~**Section 1. Classes of Members.** There shall be one class of members.~~

~~**Section 2. Eligibility of Members.** Any liner carrier owning, operating or chartering vessels in international trade that desires to become a member of the corporation shall submit a written application to the corporation. Each application shall be considered by the board of directors and such membership shall be approved upon a three-quarters (3/4) vote of the board of directors. Applicants whose applications are so approved shall become members of the corporation on payment of the required dues.~~

~~Section 3. Member Voting Rights.~~ Each member shall be entitled to one vote on each matter submitted to a vote of the members.

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~~Section 4. Termination of Membership.~~ Any member may be suspended or expelled either for cause or if that member is in default in the payment of dues, or terminated if that member becomes ineligible for membership, upon a three quarters (3/4) vote of the board of directors.

~~Section 5. Resignation/Financial Commitment.~~ Any member may resign at any time on no less than six (6) months' notice by sending a written notice of resignation notifying the Chair of the board of directors.

~~Section 6. Reinstatement.~~ Upon written request, and a three quarters (3/4) vote of the board of directors, a former member may be reinstated to membership on such terms as the board of directors may reasonably deem appropriate.

~~Section 7. Transfer of Membership.~~ Membership in this corporation is not transferable or assignable except as approved by a three quarters (3/4) vote of the board of directors.

~~Section 8. FMC Agreement.~~ Members that are ocean common carriers within the meaning of the U.S. Shipping Act, as amended, shall be parties to the cooperative working agreement initiated by the corporation that will be filed with the Federal Maritime Commission ("FMC"). Members that are not ocean common carriers will not be parties to any such FMC Agreement. Actions taken by the parties to the FMC Agreement shall be voluntary, and no party to the FMC Agreement shall be bound by any action taken thereunder.

ARTICLE FOUR

MEETINGS OF MEMBERS

~~Section 1. Annual Meeting.~~ An annual meeting of the members shall be held for the purpose of electing directors and for the transaction of such other business as may come before the meeting. All member meetings shall comply with applicable legal and regulatory requirements. Annual meetings may be held, and members may individually participate in, an annual meeting physically in person or remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons participating in the meeting can speak and are able to hear one another. Such participation shall constitute presence in person at the meeting. The chosen forum of the annual meeting shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.

Section 2. Special Meetings. ~~Special meetings of the members may be called by the Chair of the board of directors, a three quarters (3/4) vote of the board of directors, any two (2) members, or the president and CEO of the corporation at a place designated by the board of directors. Special meetings may be held, and members may individually participate in, a special meeting physically in person or remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons~~ World Shipping Council

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~~participating in the meeting can speak and are able to hear one another. Such participation shall constitute presence in person at the meeting. The chosen forum of the special meeting shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.~~

Section 3. Proxies. ~~At any meeting of members, a member may vote by proxy executed in writing by the member or by his duly authorized attorney in fact.~~

Section 4. Member Decisions. ~~A three quarters (3/4) vote of the members who choose to exercise their vote option at a meeting in which there is a quorum shall be required for any act of the members taken at a meeting, unless the act of a greater number is required by law or by these Bylaws. Decisions on positions advocated or developed by the corporation ("External Matters") shall define the position of the corporation, but no such decision shall be binding on any member. For the avoidance of doubt, no decision on External Matters taken by the Corporation shall limit or restrict any member from taking a different position on any such External Matters. For purposes of clarity, External Matters shall not include internal governance or administrative matters of the corporation, such as budget and dues, election of directors or a board chair, approval of new members or termination of current members, and changes to the Bylaws.~~

Section 5. Quorum. ~~A minimum of sixty percent (60%) of all the members shall constitute a quorum for the transaction of business at any meeting of the members.~~

Section 6. Notice. ~~Notice stating the place, day and hour of any meeting of members shall be given at least ten (10) days prior to such meeting by written notice delivered personally, via courier delivery service (e.g. Federal Express), by email or other electronic means. If sent by electronic means, the notice shall be deemed delivered on the date of transmission if such date is a business day, or otherwise shall be deemed delivered on the immediate next business day. The purpose or purposes for which the meeting is called shall be stated in the notice. In circumstances requiring urgent actions, this notice requirement can be waived by a three quarters (3/4) vote of the members by email or other electronic means.~~

ARTICLE FIVE

BOARD OF DIRECTORS

Section 1. General Powers. ~~The affairs of the corporation shall be managed by the board of directors.~~

Section 2. Number, Tenure, Qualifications, and Chair and Vice Chair.

a. ~~—The corporation shall have a minimum of seven (7) directors and a maximum of twenty (20) directors. All members shall be entitled to designate one (1) representative to serve as a director on the corporation's board of World Shipping Council~~

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~~directors. Should the board be comprised of the maximum twenty (20) directors, any additional members not already on the board shall be entitled to designate a representative to serve as a director on a first come, first served basis as soon as a board seat becomes available. Member representatives that meet the criteria set forth in subsection 2(b) herein are permitted to nominate themselves to serve as a director. Members shall notify the Chair of the board of directors of their self-nominations, who shall further notify the other directors. Unless a maximum of twenty (20) directors is reached, self-nominations to serve on the board shall be effective upon notification to the board of directors.~~

b. ~~—Participation as a director of the corporation shall be available to any chief executive officer or equivalent of any member in good standing. Absent extenuating circumstances, members shall take all reasonable efforts to provide their CEO or equivalent as a director. In the event a CEO or equivalent of a member anticipates being unable to participate at the Board, the member CEO or equivalent may nominate (1) other representative from the member to sit on the board as a director in the CEO or equivalent's absence. This representative must possess decision making authority for the member in order to participate in Board sessions. A member may not designate any other individual to sit on and participate in Board sessions except for the one (1) representative provided for in this section.~~

~~All CEO or equivalent representatives on the board shall continue to hold their position as director until their successor is appointed. Any non-CEO participant on the board shall be subject to a renewable term of three (3) years, or shorter at the member's direction. Directors need not be residents of the District of Columbia.~~

c. ~~—The board of directors shall, by a three quarters (3/4) vote, elect a chair and vice chair of the board of directors, each of whom shall serve at least a two (2) year term and, in no event serve longer than a three (3) year term. The chair of the board of directors shall preside over all meetings of the members and board of directors. In the absence of the chair at such meeting, the vicechair shall preside. In the absence of both the chair and vice chair, the board shall designate an acting chair to preside at such meeting, which may be the~~

President and CEO. The chair and vice chair can be removed by a threequarters (3/4) vote of the board of directors at any time.

Section 3. Regular Meetings. A regular meeting of the board of directors shall be held, at least twice on an annual basis. The board of directors shall undertake all efforts to ensure that at least one (1) of the regular meetings occurs in person, at a location to be determined by the board of directors. All meetings of the board of directors shall comply with applicable legal and regulatory requirements. A regular board meeting may be held, and directors may individually participate in, a regular board meeting physically in person or remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons participating in the meeting are able to speak and hear one another. Such participation shall constitute presence in person at the meeting. The chosen forum of the regular meeting of the board shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.

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Section 4. Special Meetings. Special meetings of the board of directors may be called by or at the request of the chair, vice chair, any two (2) directors, or the president and CEO and shall be held at such place as the board may determine. A special board meeting may be held, and directors may individually participate in, a special board meeting physically in person or

~~remotely by means of telephone conference, online or video conference, or any other means of communication by which all persons participating in the meeting are able to speak and hear one another. Such participation shall constitute presence in person at the meeting. Additionally, upon the request of the chair, vice chair, any two (2) directors, or the President and CEO, and at the approval of the chair in his or her reasonable discretion, the board of directors may consider and vote on individual measures by means of e-mail correspondence without the need to meet in person or remotely. In this context, (i) all members of the board of directors shall be deemed present for the proposed vote upon receipt of the e-mail communication, (ii) the President and CEO, or his or her designee, shall provide an explicit time period in which members may submit votes, and (iii) the lack of a response by a member of the board of directors in the applicable time period shall be considered a vote against the proposed action. At the conclusion of any vote conducted through e-mail correspondence, the President and CEO shall provide a summary to the board of directors of the voting results on an aggregated basis. The chosen forum of the special meeting of the board shall have no effect on the voting required for actions to be taken or decisions to be made at such meeting under these Bylaws.~~

~~**Section 5. Limitation on Alternates.** A director may not delegate or assign to any other person the right to participate in Board meetings or to cast votes. Notwithstanding the preceding sentence, a CEO or equivalent may replace a director with less executive authority from the same member or member's affiliate for a particular meeting provided that at least five days' advance notice is provided to the chair.~~

~~**Section 6. Board Decisions.** A three-quarters (3/4) vote of the directors who choose to exercise their vote option at a meeting in which there is a quorum shall be required for all acts of the board taken at a meeting, unless the act of a greater number is required by law or by these Bylaws.~~

~~**Section 7. Quorum.** The presence of fifty percent (50%) of all directors shall constitute a quorum; provided, however, that if the board of directors is comprised of seven (7) directors, then three (3) directors shall constitute a quorum.~~

~~**Section 8. Notice.** Notice of any meeting of the board of directors shall be given at least ten (10) days prior to such meeting by written notice delivered personally, via courier delivery service (e.g. Federal Express), by email or other electronic means. If sent by electronic means, the notice shall be deemed delivered on the date of transmission if such date is a business day, or otherwise shall be deemed delivered on the immediate next business day. The attendance of a director at any meeting shall constitute a waiver of notice of such meeting, except where a director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened. The business to be transacted at the meeting need not be specified in the notice or waiver of notice of such meeting, unless~~

~~specifically required by law or by these Bylaws. In circumstances requiring urgent actions, this notice requirement can be waived by a three quarters (3/4) vote of the board of directors by email or other electronic means.~~

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ARTICLE SIX

OFFICERS AND STAFF

~~**Section 1. Officers.** The officers of the corporation shall be a president and CEO, one (1) or more vice presidents (the number thereof to be determined by the board of directors), and a treasurer. Any two (2) or more offices may be held by the same person, except the president and treasurer.~~

~~**Section 2. Election and Term of Office.** All the officers of the corporation shall be elected by a three quarters (3/4) vote of the board of directors, for terms to be decided by the board of directors. All officers,~~

~~including the president and CEO, shall hold office until their successors have been duly elected.~~

~~**Section 3. Removal.** Any officer elected or appointed by the board of directors may be removed by a three quarters (3/4) vote of the board of directors whenever in its judgment the best interests of the corporation would be served thereby.~~

~~**Section 4. Vacancies.** A vacancy in any office because of death, resignation, removal, disqualification or otherwise, may be filled by the board of directors for the unexpired portion of the term.~~

~~**Section 5. Powers and Duties.** The officers shall have such powers and shall perform such duties as may from time to time be specified in resolutions or other directives of the board of directors. In the absence of such specifications, each officer shall have the powers and authority and shall perform and discharge the duties of officers of the same title serving in nonprofit corporations having the same or similar general purposes and objectives as this corporation.~~

~~**Section 6. Staff.** The corporation may appoint designated professional staff to assist the officers in the day-to-day functions of the corporation as decided by the board of directors.~~

ARTICLE SEVEN

~~COMMITTEES OF DIRECTORS AND SUBJECT MATTER COUNCILS~~

~~**Section 1. Board Committees.** The board of directors may, by a three-quarters (3/4) vote of the directors, designate one (1) or more committees, each of which shall consist of two (2) or more directors, which committees, to the extent provided in such resolution, shall have and exercise the authority of the board of directors in the management of the corporation; but the designation of such committees and the delegation thereto of authority shall not operate to relieve the board of directors, or any individual director, of any responsibility imposed on it or the individual director by law.~~

~~**Section 2. Functional Councils.**~~

~~a.——The board of directors may, by a three quarters (3/4) vote of the directors, establish, abolish and define the subject matter scope of any such functional councils as it deems necessary and proper to carry out the purposes of the corporation.~~

~~b.——The functional councils shall be made up of member representatives with appropriate expertise and responsibilities within their respective companies. In coordination with the president and CEO, officers, and designated professional staff of the corporation, and under the ultimate direction of the board of directors, the councils shall coordinate programs,~~

~~policies, regulatory initiatives, public positions of the corporation and other actions to fulfill the purposes of the corporation. In addition to furthering the World Shipping Council~~

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~~substantive work of the corporation, the councils shall provide a forum for all members to share their views on policy matters properly within the scope of the corporation's work. All actions by a council shall require a three quarters (3/4) vote of the members of the council who choose to exercise their vote option. No member shall be required to participate on any functional council established by the board of directors, or be required to vote on any decisions to be made or actions to be taken by a functional council. All actions taken by any functional council shall be voluntary, and no member participating on any functional council shall be bound by such actions.~~

~~c. — The following councils are hereby authorized as of the effective date of this Article Seven, Section 2:~~

- ~~i. — Environment and Climate~~
- ~~ii. — Safety and Security~~
- ~~iii. — Industry Structure~~
- ~~iv. — Communications and Public Relations~~

~~d. — Each member is entitled to designate one representative and one alternate representative for each council. The members of each council shall by nomination and three quarters (3/4) vote (one member/one vote) choose a chair to coordinate and organize the work of each council. The council chairs shall serve for two (2) years. Councils may meet in person or by means of telephone conference, video conference, or any other means of communication by which all persons participating in the meeting can speak and are able to hear one another. The council chair shall call meetings as required in order to conduct the business of the council, with the frequency, format and location of such meetings designed to conduct the necessary business of the council with due consideration to minimizing unnecessary cost and disruption for council members and to facilitating participation of all members. All council meetings shall comply with any legal or regulatory requirements.~~

~~e. — Each council shall, through its chair and in coordination with the president and CEO, report at least once per year to the board of directors regarding the work of that council. The chair of each council, the chair of the board, the president and CEO and any member representative or alternate on any council may elevate an issue to the board of directors in any case in which any such individual believes that such issue is of such legal, policy, financial or operational importance that it warrants the consideration of the board of directors.~~

~~f. — In order to ensure that the corporation remains agile and~~

responsive to issues of importance to the membership, the president and CEO shall communicate fully and regularly with the chair of each council regarding matters that require the attention of that council.

~~ARTICLE EIGHT~~ ~~CONTRACTS, CHECKS, DEPOSITS AND GIFTS~~

~~**Section 1. Contracts.** The board of directors may authorize any officer or agent of the corporation to enter into any contract or execute and deliver any~~
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~~instrument in the name of and on behalf of the corporation, and such authority may be general or may be confined to specific instances.~~

~~**Section 2. Checks, Drafts, or Orders.** All checks, drafts or orders for the payment of money, notes or other evidences of indebtedness issued in the name of the corporation, shall be signed by such officer(s) or agent(s) of the corporation, and in such manner as shall from time to time be determined by the board of directors. In the absence of such determination by the board of directors, such instruments shall be signed by the treasurer or the president and CEO of the corporation.~~

~~**Section 3. Deposits.** All funds of the corporation shall be deposited from time to time to the credit of the corporation in such banks, trust companies or other depositories as the board of directors may select.~~

~~**Section 4. Gifts.** The board of directors may accept on behalf of the corporation any contribution, gift, bequest or devise for any purpose of the corporation; provided such gift complies with applicable legal and regulatory requirements.~~

~~ARTICLE NINE~~ ~~CERTIFICATES OF MEMBERSHIP~~

~~**Section 1. Certificates of Membership.** The board of directors shall, upon the request of any member, provide for the issuance of certificates evidencing membership in the corporation, which certificates shall be in such form as may be determined by the board of directors. Such certificates shall be signed by the president and CEO, vice president or treasurer and shall be sealed with the seal of the corporation.~~

~~**Section 2. Issuance of Certificates.** When a member has been elected to membership and has paid the dues that may then be required, a certificate of membership shall be issued in its name and delivered to it by or on behalf of an officer.~~

~~ARTICLE TEN~~

BOOKS AND RECORDS

~~The corporation shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of its members, board of directors and any committees or subject matter councils, and shall keep at the principal office a record giving the names and addresses of the members entitled to vote. All books and records of the corporation may be inspected by any member, or his agent or attorney, for any proper purpose at any reasonable time.~~

ARTICLE ELEVEN

FISCAL YEAR

~~The fiscal year of the corporation shall be the annual period of August 1—July 31, unless otherwise decided by the board of directors.~~

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ARTICLE TWELVE

DUES

~~**Section 1. Annual Dues.** There will be five (5) categories or tiers of membership dues, which are based on the global container capacity (TEU) operated (owned and chartered) by each member, as calculated by a publicly available source to be determined by the board of directors. Members that do not operate cellular containerhips shall be in the lowest membership dues tier (Tier 5). Decisions with respect to dues shall be made by a three quarters (3/4) vote of the board of directors.~~

~~**Section 2. Payment of Dues.** Dues shall be billed and payable annually in advance for each annual period. Interest at the rate of ten percent (10%) per annum shall be charged on all dues payments that are delinquent for more than thirty (30) days, and such interest may only be compromised or waived for good cause as determined by the board of directors.~~

~~**Section 3. Annual Review of TEU Volume for Purposes of Adjusting Dues.** At the beginning of every annual period (August 1—July 31), the dues schedule for the coming annual period shall be adjusted based on: i) the approved budget for the coming annual period, and ii) the global container capacity (TEU) operated (owned and chartered) by each member on May 1 as reported by a publicly available source to be determined by the board of directors.~~

~~**Section 4. Default and Termination of Membership.** When any member is delinquent in the payment of dues for a period of three (3) months, it shall not be entitled to vote and its membership may be terminated by the board of directors as provided hereinabove.~~

ARTICLE THIRTEEN

SEAL

~~The board of directors shall provide a corporate seal.~~

ARTICLE FOURTEEN

WAIVER OF NOTICE

~~Whenever any notice is required to be given under the provisions of the District of Columbia Nonprofit Corporation Act or under the provisions of the Articles of Incorporation or the Bylaws of the corporation, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be deemed equivalent to the giving of such notice.~~

ARTICLE FIFTEEN

BUDGET

~~At least thirty (30) days before the regular meeting of the board of directors, or within such period as the board of directors upon reasonable~~

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~~notice designates, the president and CEO of the corporation shall submit an annual budget for the upcoming annual period to the board of directors for their approval. The budget shall be approved by a three-quarters (3/4) vote of the board of directors. If a proposed budget is not approved, the president and CEO shall present a revised budget for consideration taking into account the points raised by board members during discussion of the prior proposal. In the event that a budget for the upcoming fiscal year is not approved, the budget and dues levels approved for the then-current fiscal year shall become the budget and dues level for the upcoming fiscal year until such time as that budget may be amended by three-quarters (3/4) vote of the board of directors.~~

~~ARTICLE SIXTEEN~~

~~**AMENDMENT OF BYLAWS AND ARTICLES OF INCORPORATION**~~

~~Except as otherwise provided for herein, these Bylaws and the Articles of~~

~~Incorporation of the corporation may be altered, amended or repealed, and new Bylaws or Articles may be adopted by a three-quarters (3/4) vote of the members.~~

ARTICLE SEVENTEEN
DISSOLUTION

~~The corporation may be dissolved by a three-quarters (3/4) vote of all the members. Upon dissolution, all the assets remaining after satisfying all debts, liabilities and obligations of the corporation shall be distributed to the members on a pro rata basis of their contributions; provided, however, that no member shall receive a distribution exceeding the total amount of dues it paid to the corporation.~~

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EXHIBIT C

Original Title Page

WORLD SHIPPING COUNCIL AGREEMENT

A Cooperative Working Agreement

FMC Agreement No. 201349

(2nd Edition)

Expiration Date: None

This Agreement Has Not Been Published Previously

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ARTICLE 1: NAME OF THE AGREEMENT

This agreement shall be known as the World Shipping Council Agreement (“the Agreement”).

ARTICLE 2: PURPOSES OF THE AGREEMENT

The World Shipping Council (“WSC”) is a trade association that provides a unified voice for the global liner shipping industry on public policy matters impacting the industry. While WSC will continue to undertake trade association, regulatory, and policy matters, which are not subject to the U.S. Shipping Act or the Federal Maritime Commission’s (FMC) jurisdiction, this Agreement authorizes the members of WSC to engage in certain issues and undertake certain cooperative activities involving operational matters that fall within the U.S. Shipping Act and the FMC’s jurisdiction as cooperative working arrangements.

ARTICLE 3: PARTIES

The Parties to the Agreement are the individual ocean common carrier members of WSC, which are listed in Appendix A hereto (hereinafter referred to individually as a “Party” and jointly as the “Parties”), as may be amended from time to time.

ARTICLE 4: GEOGRAPHIC SCOPE

This Agreement covers international liner shipping trades worldwide, including the U.S. international trades within the jurisdiction of the FMC.¹

ARTICLE 5: AUTHORITIES

5.1 Under this Agreement, the Parties, between and among themselves, and with other members of WSC (see Articles 5.4 and 8.2) are authorized to exchange information, discuss, and reach voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices), with respect to any of the following matters:

(a) environmental and climate-related matters relating to vessel emissions (liquid, gas and/or solid), ship recycling, cold-ironing, ballast water exchange, plastics at sea, noise pollution, the protection of threatened and endangered species, vessel operations in environmentally sensitive regions (including the Arctic, Antarctic, and/or other areas where vessel operations may affect wildlife), requirements of or under consideration by state, national, regional or international governments or institutions relating to vessel fuel types and usage, and the development and/or use of alternative vessel fuels and energy-efficient technologies.

¹ Although the activities described herein shall also be undertaken with respect to trades between countries other than the United States, such trades are not within the scope of the U.S. Shipping Act or the jurisdiction of the FMC and therefore are not included in this Agreement.

(b) transportation infrastructure; cargo and supply chain fluidity; port and terminal operations; inland operations impacting the provision of ocean and intermodal transportation services; cargo handling/processing infrastructure and facilities; and canal operations and toll systems;

(c) safety and security issues relating to the packing, labeling, stowage and handling of dangerous cargoes; the proper packing, stowage and lashing of cargo; piracy; vessel and crew security and health, including positions to be taken in response to requirements of or under consideration by state, national, regional or international governments or institutions relating to global pandemics; the safety and security of seafarers during voyage as relates to laws and regulations implemented by local, national, or international governmental entities; monitoring stowaways onboard vessels, which may endanger the vessel or crew; screening, scanning and/or weighing cargo; pest infestation of cargo, containers and/or vessels; security and customs requirements (including crew immigration); counterfeit goods; smuggling of contraband; human or wildlife trafficking; containers lost at sea; vessel fires; vessel automation; and technological advancements in vessel operation and navigation.

The Parties, between and among themselves and with other members of WSC, are authorized to create and maintain, either directly and/or through one or more third-party contractors, databases or other data visualization tools relating to seafarer well-being, safety, or security matters as described within this section

5.1(c), provided that no commercially sensitive information shall be exchanged between or among the Parties and/or other members of WSC related to any such database or similar tool.

To reduce the safety risks to crews, vessels, other cargo, and the marine environment created by the carriage of undeclared or otherwise non-compliant dangerous goods, the Parties, between and among themselves and with other members of WSC, are authorized to: (A) discuss and agree upon voluntary best practices relating to minimum safety standards for the screening and inspection of dangerous goods cargoes, which the individual Parties and other members of WSC may choose to adopt and implement; (B) establish and administer, either directly and/or through one or more third-party contractors, a common digital solutions tool relating to cargo screening processes, technologies, and methods, including the provision by the Parties and other members of WSC of cargo booking data and information and cargo documentation to a third party contractor, and checking such cargo booking data and information and cargo documentation against shared keywords libraries, Optical Character Recognition systems, and background checks, provided that no cargo booking data and information and cargo documentation shall be exchanged directly between and among the Parties and/or other members of WSC, participation in any common digital solutions tool shall be voluntary, and each Party and other member of WSC shall at all times be free to adopt and implement their own cargo screening processes, technologies, and methods in lieu of or in

addition to any common digital solutions tool; (C) create and maintain, either directly and/or through one or more third-party contractors, databases of shippers and cargo inspection companies that demonstrate conformance with such minimum safety criteria as may be established and/or revised by the Parties and other members of WSC from time to time, provided that no commercially sensitive information shall be exchanged between and among the Parties and/or other members of WSC related to any such database and that each Party and other member of WSC shall at all times be free to individually determine those entities with which it does business; and (D) create and maintain, either directly and/or through one or more third-party contractors, databases of incidents relating to the identification of undeclared or otherwise non-compliant goods identified within this section 5.1(c), including the type, date, and root cause of the incident, commodities involved in the incident, and the ports of loading/discharge, provided that no commercially sensitive information shall be exchanged between or among the Parties and/or other members of WSC related to any such database. Parties participating in any voluntary program contemplated by subsections (A), (B), (C), and D of this section 5.1(c) will enter individually into contractual arrangements with any third party contractor(s).

5.2 The Parties hereto, acting through WSC are authorized to discuss and take common positions relating to the subjects within the scope of Articles 5.1 with industry stakeholders (such as ocean carriers and other industry

organizations, cargo owners, ocean transportation intermediaries, customs brokers, terminal operators, and inland carriers or providers of services relating to ocean transportation, such as cargo surveyors, security companies, pilots, tug operators, and line handlers); provided, however, that all common positions reached by the Parties hereto acting through WSC shall be entirely voluntary, and no Party shall be bound by any such common position, and provided further that nothing herein authorizes the Parties hereto to engage in any joint commercial negotiations with any stakeholder or service provider, vendor or cargo interest, except as provided in section 5.1(c) of this agreement.

5.3 Nothing in this Agreement shall be construed as obligating any Party to discuss, provide or exchange any information with any other Party or Parties. If any discussion or exchange of information results in the Parties' adoption of any voluntary, non-binding agreement (including best practices and/or guidelines for voluntary implementation of best practices), those agreements shall be subject to the requirements of all applicable laws and to the right of each Party to independent action and to necessary approvals or requirements of Governments.

5.4 Nothing in this Agreement authorizes the Parties to discuss or agree upon: (a) the vessel capacity to be deployed by any of them, current, future or proposed; or (b) the terms and conditions under which any member provides ocean transportation services to its customers.

5.5 It is understood that to the extent any entity not a person subject to the Shipping Act of 1984, as amended, that is a member of WSC joins in activities of

the Parties under this Agreement, such participation does not bring such entity(ies) under the FMC's jurisdiction, nor does it confer antitrust immunity on the non-regulated entity under the Shipping Act; provided that the participation of such non-regulated entities in activities under the Agreement is understood to have no effect on the regulatory jurisdiction of the FMC or the antitrust immunity conferred by the Shipping Act on the Parties for their activities under this Agreement.

ARTICLE 6: ADMINISTRATION OF AGREEMENT

6.1 The operation of WSC shall be governed, and this Agreement shall be administered, in accordance with the WSC Bylaws.

6.2 The Parties acting through WSC may from time to time establish such standing and/or ad hoc councils, committees, or working groups as they deem necessary or desirable.

6.3 Upon action taken by the Parties hereunder, the WSC Secretariat and Agreement counsel are hereby authorized to prepare amendments to this Agreement and information relating thereto, and to execute and file same with the Federal Maritime Commission.

ARTICLE 7: MEMBERSHIP

7.1 Any liner ocean common carrier owning, operating, or chartering vessels in international trade that desires to become a member of WSC shall submit a written application to WSC, and each application shall be considered by the WSC

board of directors and such membership shall be approved by a three-quarters (3/4) vote of the board of directors.

7.2 All WSC members that are ocean common carriers shall be Parties to this Agreement. Those members of WSC that are not ocean common carriers will not be Parties to this Agreement. Membership in WSC may be held by an entity that is not an ocean common carrier in its own right, but which is the parent company of one or more ocean common carriers. In such cases, the parent company shall be the member of WSC and the ocean common carrier(s) shall be party to this Agreement.

7.3 This Agreement shall be amended to reflect the addition of any new members to WSC or the resignation of any members from WSC.

ARTICLE 8: VOTING

8.1 A three-quarters (3/4) vote of the directors who choose to exercise their vote option at a meeting in which there is a quorum shall be required for all acts of the board of directors of WSC, including amendments to this Agreement, taken at a meeting.

8.2 All actions taken by the Parties hereunder acting through WSC, including discussion or exchange of information, participation in any standing and/or ad hoc councils, committees, or working groups, and adoption of any voluntary, non-binding agreements and/or common positions relating to the subjects within the scope of Articles 5.1, shall be entirely voluntary and no Party shall be bound by any such actions.

ARTICLE 9: DURATION AND TERMINATION

9.1 This Agreement shall become effective on the date it enters into effect under the U.S. Shipping Act of 1984, as amended, and shall remain in effect indefinitely thereafter.

9.2 This Agreement may be terminated by a vote of three-quarters of the Parties.

ARTICLE 10: GENERAL PROVISIONS

10.1 This Agreement does not create an association, joint venture, partnership, employment relationship, or other agency relationship between or among any of the Parties hereto or between any Party hereto and any person acting in connection with this Agreement. Neither does it create any entity with a legal personality or give rise to any joint liability or indemnity obligation on the part of any Party, nor does any Party authorize acceptance of service of process by anyone on its behalf.

10.2 If any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of law or public policy, all other terms and provisions of this Agreement shall nonetheless remain in full force and effect. Upon a determination that any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any rule of law or public policy, the Parties shall negotiate in good faith to modify this Agreement so as to effect the original intent of the Parties as closely as possible in a mutually acceptable manner in order that the

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activities contemplated hereby be undertaken as originally contemplated to the fullest extent possible.

[SIGNATURE PAGE FOLLOWS]

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SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed
by their duly authorized representatives as of this [DAY] day of [MONTH] 2026.

COSCO SHIPPING LINES CO.,
ORIENT OVERSEAS CONTAINER LINE
LTD., and OOCL (EUROPE) LIMITED
(acting as a single party)



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

CMA CGM S.A., APL CO. PTE LTD.,
AMERICAN PRESIDENT LINES LLC
and ANL SINGAPORE PTE LTD.
(acting as a single party)



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

CROWLEY CARIBBEAN SERVICES, LLC
and CROWLEY LATIN AMERICA
SERVICES, LLC (acting as a single party)



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

EVERGREEN MARINE CORPORATION
(TAIWAN) LTD.



By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

SIGNATURE PAGE (continued)

HAPAG-LLOYD AG
LIMITED

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

HMM COMPANY

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

INDEPENDENT CONTAINER LINE, LTD.
KAISHA LTD.

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

KAWASAKI KISEN

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

MAERSK A/S and HAMBURG
SUDAMARIKANISCHE
DAMPFSCHIFFFAHRTS
GESELLSCHAFT KG
(acting as a single party)

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

MSC MEDITERRANEAN
SHIPPING COMPANY SA

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

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(2nd Edition)

SIGNATURE PAGE (continued)

mitsui o.s.k. lines, ltd.
kaisha

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

Ocean Network Express
Wilhelmsen
PTE LTD.

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

WAN HAI LINES LTD. and
TRANSPORT CORP.
WAN HAI LINES (SINGAPORE)
PTE LTD. (acting as a single party)

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

ZIM Integrated Shipping
Services, Ltd.

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

NIPPON Yusen

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

WALLENIUS

Ocean AS

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

YANG MING MARINE

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

MATSON NAVIGATION COMPANY, INC.

By: 

Name: Robert K. Magovern

Title: Attorney-in-Fact

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(2nd Edition)

SIGNATURE PAGE (continued)

SWIRE SHIPPING PTE. LTD.

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

EMIRATES SHIPPING LINE FZE

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

HÖEGH AUTOLINERS AS

By: _____

Name: Robert K. Magovern

Title: Attorney-in-Fact

PARTIES

COSCO SHIPPING LINES CO., LTD.,
ORIENT OVERSEAS CONTAINER LINE LTD., and
OOCL (EUROPE) LIMITED (acting as a single party)
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PRESIDENT LINES, LLC and ANL SINGAPORE PTE LTD.
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CROWLEY LATIN AMERICA SERVICES, LLC
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